SPPD Policy F-18

SUN PRAIRIE POLICE DEPARTMENT POLICY AND PROCEDURE — Field Operations Policy: AUTOMATIC LICENSE PLATE READERS — POLICY F-18 Updated: March 3, 2026. Reviewed: March 3, 2026. History: Replaces F-18 (12/17/2010); updated 08/11/2014, 10/31/2016, new format 05/06/2025, updated 3/03/2026. 2598 West Main Street, Sun Prairie, WI 53590.

1.1 Policy

The Sun Prairie Police Department (SNPD) utilizes Automated License Plate Readers (ALPR) to enhance public safety, aid in criminal investigations, and improve law enforcement efficiency. ALPR capture infrared images of vehicle license plates, convert them to digital text using Optical Character Recognition (OCR) technology, and match them against databases of license plates of interest. ALPR can alert officers when a match is detected, aiding in identifying stolen vehicles, wanted persons, and other subjects of interest.

This policy governs the use, management, and retention of ALPR data by SNPD personnel, ensuring compliance with privacy laws and safeguarding civil liberties.

1.2 Objective

To provide department members with guidelines on the proper use of the ALPR in their official duties.

1.3 Definitions

- ALPR (Automated License Plate Reader): A system consisting of cameras and technology that captures images of vehicle license plates, converts them to digital text using OCR, and compares them to databases of vehicles of interest.
- OCR (Optical Character Recognition): Technology that identifies printed characters using photoelectric devices and computer software.
- Read: A digital image of a license plate and associated metadata (e.g., date, time, and geographic coordinates) captured by the ALPR system.
- Alert: A visual and/or auditory notice triggered when an ALPR system detects a match between a scanned license plate and a plate of interest in the system's database.
- Hit: A read that matches a license plate on a list of plates related to stolen vehicles, wanted individuals, or other investigatory purposes.
- Hot List: A list of license plate numbers of interest to law enforcement agencies, including, but not limited to, stolen cars, vehicles owned by persons of interest, and vehicles associated with AMBER Alerts. Hot list information can come from a variety of sources, including the National Insurance Crime Bureau and the National Crime Information Center (NCIC), national AMBER Alerts and Department of Homeland Security watch lists. The Department of Transportation can provide lists of expired registration plates, and agencies can interface their own locally compiled hot lists. These lists serve an officer safety function as well as an investigatory purpose.
- Stored ALPR Data: Data, including license plate images, vehicle images, and metadata, obtained by the ALPR system and stored for future querying.

1.4 Procedure

1.4.1 Management and Oversight

1.4.1.1 System Oversight: The Chief of Police shall assign a System Administrator who is responsible for overseeing the ALPR program, including the installation, maintenance, and operation of ALPR units. This individual will also manage system security, data retention, and system audits. 1.4.1.2 Data Retention: ALPR data will be retained for 30 days unless needed for investigative purposes.

1.4.2 Authorized User Access

1.4.2.1 Authorized Personnel: Only authorized department personnel who have received training in the use of ALPR systems may access or operate the system. Unauthorized access or use of ALPR data is strictly prohibited. 1.4.2.2 Login Requirements: Authorized users must log into the ALPR system using their designated credentials. All access will be automatically logged, including the date, time, user identity, and purpose of access. 1.4.2.3 Data Access Logs: The system will automatically record all queries and access to stored ALPR data, including the user, the purpose of the query, and the data retrieved. These logs will be used for auditing purposes. 1.4.2.4 Data Confidentiality: ALPR data is confidential and restricted to legitimate law enforcement purposes. 1.4.2.5 Background Investigations: Personnel authorized to access or use ALPR systems must undergo background investigations, including CIB and FBI record checks by fingerprint identification, before being granted access.

1.4.3 ALPR Usage

1.4.3.1 Alert Verification: Upon receiving an alert, officers must visually verify that the license plate matches the plate read by the ALPR system. Officers must also verify the current status of the vehicle through dispatch or a law enforcement database (e.g., NCIC, TIME) before taking any enforcement action. 1.4.3.2 Documentation of Actions: Any law enforcement actions taken based on an ALPR alert must be documented in a report or citation, including the reason for the stop, the verification process, and any enforcement actions taken. Standardized statement: "The vehicle was identified via the Automated License Plate Reader (ALPR) system. The license plate was visually verified, and the status was confirmed through NCIC/TIME before enforcement action was taken." 1.4.3.3 Reporting Successful Uses: Officers are required to report all successful uses of the ALPR system (e.g., identification of stolen vehicles or wanted persons) to the System Administrator by using the ALPR classification in RMS.

1.4.4 Access to Stored ALPR Data

1.4.4.1 Querying ALPR Data: Authorized personnel may query stored ALPR data only when there is a reasonable belief that the data relates to an active investigation or legitimate law enforcement objective. Authorized users shall document the purpose of all ALPR searches. At a minimum, documentation for each search shall include: (1) A case number — a Sun Prairie or another agency's case number; if none exists yet, a Sun Prairie case number shall be generated. (2) A search type selected from the ALPR system's standardized incident categories (aligned with crime classifications such as NIBRS). (3) A search reason that briefly explains how the search relates to the investigation (e.g., suspect vehicle, victim vehicle, or a vehicle known to have been in the area). (4) A lawful objective tied to a legitimate law enforcement purpose. ALPR searches shall be conducted and documented in a manner that allows the department to verify the validity of each search and demonstrate compliance.

1.4.4.2 Data Sharing: ALPR data may be shared through the department-approved license plate reader system with designated law enforcement agencies. ALPR data shall not be shared with federal agencies unless required by court order or expressly approved by the Chief of Police.

1.4.4.3 Dissemination to Non-Law Enforcement Agencies: ALPR data shall only be released to law enforcement agencies for legitimate law enforcement purposes. Any request from non-law enforcement entities must go through the department's open records process. Any other release to non-law enforcement agencies, private individuals, or external organizations is strictly prohibited unless required by court order, subpoena, or the chief or their designee.

1.4.5 Maintenance and Auditing

The System Administrator shall be responsible for ALPR auditing and audit-related reporting. Audits shall assess compliance with this policy and applicable law, including review of system access, search activity, documentation of search purpose, and adherence to data retention periods. The System Administrator shall compile periodic ALPR usage and audit summary reports, which may include the number of reads, alerts, successful deployments, and any identified policy violations. The frequency, scope, methodology, and documentation of audits shall be set forth in a separate audit procedure document approved by the chief. Audit records shall be retained in accordance with department record retention requirements.

1.4.6 System Updates and Technology Changes

The department will regularly review its ALPR systems. The System Administrator will be responsible for (1) implementing necessary software or hardware updates; (2) ensuring updates comply with current legal and regulatory standards; and (3) regularly evaluating the system for required modifications to ensure performance and continued compliance with privacy laws.

1.4.7 Privacy Safeguards

1.4.7.1 Restricted Access: Only authorized personnel with a clear law enforcement purpose may access stored ALPR data. All access is automatically logged and subject to regular audits. Any employee becoming aware of a possible violation, including unauthorized access, use, release and/or dissemination of LPR data, shall refer the matter to his or her supervisor. 1.4.7.2 Limited Data Usage: ALPR systems are only used for legitimate law enforcement objectives, including locating stolen vehicles, identifying wanted persons, and supporting criminal investigations. The system shall not be used to, nor is designed to, surveil or track individuals or vehicles without reasonable suspicion of a crime. 1.4.7.3 Non-Discriminatory Use: ALPR technology shall not be used to monitor individuals or groups based on protected characteristics such as race, religion, gender, or political affiliation. 1.4.7.4 Public Transparency: The department will provide annual reports summarizing the use of ALPR systems, including audits. These reports will be made available to the public in accordance with department policies on public records requests.

Flock Audit Procedure

Flock Audit Procedure — Sun Prairie Police Department (updated April 2026)

Internal Audit

- Conducted once a month by the Detective Sergeant.
- The audit will include any flagged searches in the ARAT queue.
- Review of search history or irregularities in system use identified by the Audit Review Assistance Tool (ARAT).
- Email any corrective issues to the involved officer, or to seek clarification.
- Document the search review in the notes section of the ARAT.

Flock Utilization & Hits (up to Sept. 21, 2026)

Sun Prairie Police Department document, printed and annotated by Zackary ("only w/ outcomes" written at the top). Highlighted dates in the original mark the 25 items added since the May 22, 2026 update. A few lines at page edges were cut off in the photos.

Flock Utilization & Hits — By Category — Up to 9.21.2026

25 new notable items since the last update on 5.22.26

Hits on Stolen Vehicles

- 12/12/23 – Hit on stolen vehicle. No users logged in to receive alerts.
- 12/18/23 – Flock hit on stolen vehicle. Vehicle located and stopped. Stolen status had not been removed by originating agency.
- 01/25/24 – Flock hit for a stolen plate (known to be on a stolen vehicle). Hits showed EB Main then WB Main minutes later. Next hit EB so we believed it went to Park Circle. Went to the lot in an unmarked vehicle, set up to watch vehicle and make a plan, vehicle fled and missed road spikes thrown by DASO.
- 02/25/24 – Flock hit on a stolen vehicle. Vehicle located unoccupied. RO contacted and advised that the vehicle had already been located. MAPD contacted to remove it from NCIC.
- 05/28/24 – Flock hit for a stolen vehicle. Vehicle located unoccupied. Two subjects detained nearby and determined to be related. Stolen gun, gun with auto-sear, MJ, and Rx pills seized, stolen vehicle recovered. Possible link for subjects to a Madison homicide.
- 05/28/24 – Hit on stolen plate from TX. Vehicle located, VIN determined to be fake, vehicle listed as stolen from Milwaukee.
- 06/07/24 – Stolen vehicle driving recklessly. Flock camera used to confirm plate.
- 06/18/24 – Flock hit on a stolen vehicle being towed. Officers located the vehicle and returned it to the owner.
- 06/18/24 – Flock alerted to stolen vehicle. Vehicle was located and towed to an impound lot.
- 07/17/24 – Flock alert to a stolen plate. Vehicle was located. Subject was arrested for Fitchburg PC and cited for vehicle violations.
- 09/13/24 – Flock hit on stolen vehicle, located nearby and recovered.
- 10/25/24 – Flock hit on stolen vehicle. Vehicle stopped and determined owner had recovered it from a tow yard earlier in the day.
- 11/07/24 – Flock hit on vehicle stolen in other state during armed carjacking. Vehicle located, pursued until it was no longer seen, pursuit terminated.
- 12/10/24 – Vehicle listed as stolen. Located and determined to be a civil issue.
- 02/03/25 – Flock alerted to a stolen vehicle. The vehicle and driver were located and the driver was arrested on a warrant and OMVWOC.
- 01/21/26 – Alert for a stolen vehicle. Officers checked the area and located the vehicle. Driver was contacted but not arrested at the request of the listing agency. Vehicle recovered and towed.
- 04/10/26 – Vehicle stolen from SP in March, hit on LPR in Maple Bluff and Sun Prairie. Agencies worked together and located the vehicle in Maple Bluff, containing 2 spent and 1 live round. WICAN sent regarding ongoing investigation.
- 04/14/26 – LPR alert for a stolen vehicle. Image showed it on a tow truck. Truck located and stopped. Madison PD contacted for their stolen vehicle.

- 04/30/26 – LPR alert on stolen vehicle. Vehicle located, occupants detained, one subject arrested on several charges, 2nd occupant referred on charges, 3rd occupant cited and released. Vehicle and arrested subject linked to an overdose death being investigated by Madison PD. Arrested subject's phone seized and turned over to Madison PD.
- 05/01/26 – Caller reporting vehicle theft. LPR show vehicle being towed.
- 05/18/26 – LPR hit on stolen vehicle. Vehicle recovered unoccupied and turned over to other agency.
- 05/20/26 (new) – LPR hit on stolen plate. Vehicle located in nearby business parking lot. Driver/RO contacted, she advised she entered the wrong plate as stolen. She was advised to work with MAPD to correct the issue.
- 06/12/26 (new) – LPR used to confirm plate of theft suspect vehicle, obtain RO/suspect info.
- 06/23/26 (new) – Hit on a stolen vehicle, vehicle located unoccupied, turned over to DASO.
- 06/25/26 (new) – Hit on a stolen vehicle, vehicle located, occupants located, determined to be a civil issue, one occupant jailed on a PO hold.
- 07/04/26 (new) – LPR hit on a stolen vehicle, located and recovered. Driver to be referred.
- 07/23/26 (new) – LPR hit on stolen vehicle, located unoccupied. Returned to owner.
- 08/19/26 (new) – LPR hit on stolen vehicle, high risk stop, suspects apprehended and released after investigation. Vehicle returned to listing agency.
- 09/03/26 (new) – LPR hit on stolen vehicle, located by PD. RO had vehicle back already.

Recovered Stolen Property

- 04/12/24 – Recovered a stolen U-Haul after a Flock hit.
- 04/12/24 – Recovered a separate stolen vehicle after a Flock hit.
- 07/24/24 – Plate added to Flock regarding PC for a weapons violation. Within 5 minutes, Maple Bluff had the car stopped when they got an alert on their camera. Suspect and two guns taken into custody from the vehicle.
- 09/04/24 – Strong-armed robbery at a retail store in SP. Suspect plate was entered into Flock and provided a hit. Vehicle was stopped, driver fled on foot then returned and was jailed. 2 guns recovered from vehicle.
- 11/09/24 – Stolen vehicle recovered unoccupied after Flock alert.
- 03/12/25 – Several vehicles stolen from Madison dealerships. An officer searched for matching vehicles, found a Flock read, then located one of the stolen vehicles in Sun Prairie.
- 10/21/25 – Recovered stolen truck located at nearby apartment after Flock hit.
- 01/29/26 – Stolen license plate recovered.
- 04/22/26 – Caller reporting her car stolen. LPR indicates it was towed.
- 06/08/26 (new) – Suspect used the victim's lost credit card. LPR alerted to suspect vehicle in the area, located and stopped, and suspect arrested.

Retail Theft / Strongarm Robbery / Fraud

- 12/04/23 – (day of installation) – Retail theft at TJ Maxx, driver states he drove to Madison and dropped off someone. Flock caught the car passing Main and O'Keeffe immediately after the theft, contradicting the driver's story.
- 01/18/24 – $1400 retail theft at Walmart. Partial IL plate obtained. Plate captured in IL, investigation led to a suspect who is an associate of the RO.
- 02/23/24 – Flock provided the correct plate for a retail theft at Goodwill.

- 03/11/24 – Counterfeit cash and fraudulent return at Target. Plate provided was incorrect. Correct plate was confirmed in Flock.
- 10/16/24 – Retail theft where a plate was obtained. Alert was entered into Flock and DASO stopped the vehicle and obtained IDs.
- 01/09/25 – Suspect arrested for misd. retail theft and drug para. after a Flock hit on his plate. Phone taken as evidence in a burglary.
- 01/09/25 – Suspect arrested for misd. retail theft, felony bail jumping, misd. bail jumping and drug para after a Flock hit on his plate.
- 01/28/25 – Suspect conducts a gift card scam at a local retailer. Flock captures suspect vehicle and helps ID suspect.
- 05/02/25 – Attempted retail theft at Target. Flock IDed the vehicle, supplemental 10-28 query IDed the driver.
- 05/06/25 – Sauk Co. sent out a WICAN regarding a $50K burglary. Det. Ennis was able to locate the vehicle in Flock and provided the plate to Sauk Co.
- 09/16/25 – Officer added a plate to his hotlist and received a hit. Subject arrested for 4 warrants and retail theft charges.
- 09/23/25 – Armed robbery, plate obtained by victim. Vehicle hit on Flock and officers went to the area, located it, conducted a high-risk stop and arrested one subject for armed robbery.
- 11/02/25 – Counterfeit $100 used at local store. Suspect identified through vehicle located with Flock.
- 12/06/25 – $79K ATM jackpotting. LPR camera captured suspect vehicle, allowed detective to conduct offline search, discovered the vehicle was stopped and driver IDed the same night for an unrelated traffic violation. LPR in another jurisdiction alerted our detective, who contacted that agency and they picked up the vehicle.
- 01/15/26 – Retail theft vehicle identified by LPR. One subject referred for theft charges.
- 04/02/26 – Felony retail theft. LPR used to identify plate, vehicle, suspects.
- 04/21/26 – Vehicle used in retail thefts around Dane County, including SP. Plate entered into LPR, located within a few hours based on an alert coming into SP. Suspect cited for retail theft.
- 04/28/26 – Credit card fraud where suspect's card was used, items delivered to his home, then someone came to pick up the items once they were delivered and before caller retrieved them. LPR identified the vehicle and owner. Owner contacted, believed to be an unwitting participant in a scam/fraud.
- 05/17/26 – LPR used to identify associate of burglary suspect. Associate confirmed the suspect's identity. Suspect arrested and jailed.
- 05/18/26 – Credit card theft and fraudulent use. Suspect plate provided by caller. Plate linked to four other cases: SP26-08962, SP26-0920, SP26-08968, and (DASO) 26-192437.
- 05/28/26 (new) – LPR used to identify a suspect vehicle in a fraud. Case is on-going.
- 05/31/26 (new) – Money taken from local business. LPR identified suspect vehicle, suspect cited.
- 06/16/26 (new) – Retail theft. LPR identified suspect's vehicle.
- 06/19/26 (new) – Retail theft. LPR alert helped locate suspect vehicle. Suspect jailed on theft and bail jumping.
- 08/13/26 (new) – Retail theft/fraud. LPR identified suspect vehicle. Case continues.
- 09/17/26 (new) – Retail theft. Vehicle identified using LPR.

Involving a Suspect or Vehicle Fleeing

- 08/22/23 – Vehicle fled from an officer attempting a traffic stop. Officer captured first 3 letters of plate. Vehicle passed Cottage Grove's camera moments later. Plate determined from first 3 letters and vehicle description.
- 12/20/23 – Suspect fled a SP officer. Plate was entered into our hotlist. Hit on Flock alerted officers that the vehicle was returning to the RO address. Officers waited and apprehended the driver on several warrants and PC.
- 01/19/24 – Fight on Schiller St., vehicle descriptions provided. Flock showed 1 vehicle leaving. RO contacted but he was uncooperative. NFA, NR.
- 01/29/24 – Vehicle fled from an attempted traffic stop at night. The officer was unable to confirm the plate until locating it later in a Flock search.
- 02/10/25 – Reckless driver and fleeing from an attempted stop. Officers used Flock to ID the vehicle, spoke to the RO and ID'd the driver. Driver was jailed for flee/elude.
- 06/11/25 – Hit on vehicle of interest. Occupants fled. One got into an uninvolved occupied vehicle and ordered the driver to drive. He was taken into custody. 2nd suspect was taken into custody after foot pursuit.
- 10/22/25 – Flock utilized in identifying and locating burglary suspect vehicle.
- 11/21/25 – A citizen reported another driver pointed a gun at him. The suspect vehicle fled officers during a pursuit and got away. An officer entered the plate into their hotlist and were alerted to it in SP by a Flock camera. The vehicle was located and witnesses provided information leading to the suspect's arrest.
- 12/05/25 – Officer observed a car speeding on Main St. estimated over 100mph. Vehicle fled and was not initially found. Flock confirmed the vehicle's plate. Vehicle later found in SP and plate matched. Suspect arrested for eluding and reckless driving.
- 12/17/25 – Drug overdose. Subject overdoses and is revived with Narcan. Witness provided a vehicle description from the hand-to-hand deal. Officer used Flock to find a matching vehicle.
- 01/11/26 – LPR alert on vehicle from 2025 case. Suspect located, jailed for weapons violations.
- 01/17/26 – Arrested subject wondering where his car went after his arrest (PD did not remove it). LPR showed it being towed, tow company identified and shared with vehicle owner.
- 02/15/26 – Suspect vehicle in Infiniti theft triggered alert. Officers stopped and IDed occupants for the Infiniti case.
- 03/07/26 – Road rage/CDTP incident. Officers used LPR to identify the vehicle and a temp tag in the window, which helped ID the suspect.
- 03/19/26 – LPR hit on a vehicle regarding Infiniti thefts. Vehicle stopped, PC search located a handgun with an auto-sear. Passenger booked into jail on multiple gun and 961 charges.
- 04/16/26 – Fleeing vehicle identified via LPR. PC for suspect, vehicle later located and impounded. Suspect turned himself in on charges of Flee/Elude.
- 04/25/26 – LPR alert to vehicle operated by wanted subject. Subject located and arrested.
- 08/19/26 (new) – Caller reported another driver pointed a gun at him. LPR provided vehicle plate. Case under investigation.
- 09/11/26 (new) – Suspect threatened a member of LE. Suspect's plate was entered into LPR.
- 09/15/26 (new) – Overdue rental vehicle. Suspect said they moved to Chicago. LPR checked in Sun Prairie and in Chicago and confirms the move to Chicago. Case still pending.

Involving a Hit & Run

- 12/04/23 – (Day of installation) – Pedestrian and his children were almost struck by a car, then driver cursed at the pedestrian. Plate provided was inaccurate. Flock search located the car by make and color.
- 03/13/24 – Hit and run case. Flock photos confirmed the license plate hanging off the suspect vehicle as described by the victim.
- 04/05/24 – Caller reported his vehicle being rear-ended and suspect vehicle fled. Caller provided a description and a plate, but the plate was incorrect. Officer IDed the suspect vehicle using Flock at the nearby intersection.
- 05/12/24 – Hit and run crash. Vehicle was IDed by Flock after the fact. Driver arrested for felony and misdemeanor bail jumping, DA also criminally charged Hit and Run.
- 05/23/24 – Hit and run in DeForest. Officer checked Flock and found the car in the area of the cameras. DeForest declined arrest but information was shared with their PD.
- 06/06/24 – Hit and run to a mailbox. Vehicle IDed through Flock.
- 12/05/25 – Hit and run. Flock was used to confirm plate and determined the plate was not on the proper vehicle, allowing officers to search for the correct vehicle. Vehicle later found and towed.
- 02/14/26 – Suspect vehicle identified for hit and run crash. Driver cited.
- 04/25/26 – Hit and run suspect vehicle identified by LPR. Driver arrested for related domestic and cited for H&R.

Involving a Shooting / Probable Cause / Domestic DC / Warrant

- 12/15/23 – Plate entered for suspect in a domestic with 99's.
- 03/06/24 – Flock alert on a Dane County camera then SP camera for 99 and felony PC, vehicle heading towards SP. Officers located vehicle and arrested the subject and turned her over to DASO.
- 04/22/24 – Suspect in a domestic reportedly back at the victim's apartment, then made threats to harm himself. Flock hit on his vehicle and officers located him and took him into custody.
- 06/14/24 – Vehicle for a subject with PC for arrest hit on Flock, located nearby. Subject contacted and arrested for charges and additional drug charges.
- 07/28/24 – Flock alert on Fitchburg PC. Subject 95 and transported to jail.
- 08/05/24 – Vehicle involved in a shooting in Dane County hit on Flock, located at Woodman's. Involved subject located and taken into custody inside.
- 10/17/24 – Flock hit on suspect in a CDTP case with 99's. Subject jailed.
- 01/11/25 – PC arrest for Recklessly Endangering Safety – Dangerous Weapon after a Flock alert on the driver's vehicle.
- 02/23/25 – Suspect was seen looking into a bathroom stall in a women's bathroom. Plate captured and added to Flock. Flock alert, suspect located and arrested.
- 10/07/25 – Sunfield Shooting, identified rental car leaving the scene which led to suspects being identified.
- 12/09/25 – Stalking/Domestic DC – Caller reported an ex-partner stalking her in her vehicle, crashing into her, repeated unwanted communications. Suspect denied having the vehicle, driving the vehicle, or being in SP. Camera confirmed the time and location the victim described and captured both vehicles. Suspect booked into jail for stalking, DC, reckless driving.
- 12/17/25 – Warrant arrest. An officer had a wanted driver's vehicle plate on a hotlist and received an alert. The officer located the vehicle and arrested the driver for a warrant.

- 03/23/26 – LPR hit on vehicle driven by subject with PC. Subject located, jailed on theft charges.
- 03/29/26 – Warrant arrest after LPR alerted to the vehicle.
- 04/25/26 – Suspect from domestic (DC, battery) taken into custody after alert on vehicle.
- 08/28/26 (new) – LPR hit on a wanted person's vehicle. Subject jailed on the warrant.
- 08/30/26 (new) – LPR hit on suspect in domestic violence case. Suspect located and jailed.
- 09/09/26 (new) – LPR hit on suspect vehicle in Sun Prairie shooting. One suspect taken into custody.

Assistance to Other Agencies / Data Sharing

- 08/22/23 – Vehicle fled from an officer attempting a traffic stop. Officer captured first 3 letters of plate. Vehicle passed Cottage Grove's camera moments later. Plate determined from first 3 letters and vehicle description.
- 08/23/23 – Assist other Agency – group of female shoplifters in Madison, also causing disturbances at stores. Vehicle description and partial plate provided. Vehicle identified through camera data.
- 12/15/23 – WICAN from Verona PD IDed vehicle in a check fraud and receipts from a SP business. Flock hits show the vehicle in SP the same day. Business was contacted and they were also victimized. Info shared with officer.
- 01/21/24 – Female attempted to hit a male with her car then fled. She was uncooperative about turning herself in. Two vehicles put on Flock hotlist. DASO got a hit on one and arrested her for our PC (Recklessly Endangering Safety).
- 03/06/24 – Flock alert on a Dane County camera then SP camera for 99 and felony PC, vehicle heading towards SP. Officers located vehicle and arrested the subject and turned her over to DASO.
- 06/23/24 – Flock alerted to a vehicle associated to a Madison PD homicide suspect. Vehicle located by an officer. SNPD and Madison PD set up surveillance. Madison left to pursue another ATL. SNPD cleared due to low staffing.
- 08/05/24 – Vehicle involved in a shooting in Dane County hit on Flock, located at Woodman's. Involved subject located and taken into custody inside.
- 02/14/25 – Madison PD were investigating a homicide. An SP officer was able to use Flock to ID the vehicle and plate. As the officer was conducting that search, another officer located a suspicious vehicle behind a business and contacted the driver. It was the vehicle just identified by the other officer. Madison PD arrived and took custody of the driver.
- 01/29/26 – Armed carjacking in Madison, victim had ties to Sun Prairie. LPR was utilized to alert PD in case the suspect came to SP to confront the victim. LPR later indicated vehicle was enroute to Chicago.
- 02/22/26 – LPR hit on stolen plate. Vehicle and suspect identified, Madison PD came to interview and issued misdemeanor citation.
- 03/27/26 – Green County had a fatal hit and run with a pedestrian victim. They released a WICAN with plate information. ALPR alerted officers to the vehicle and it was located. Photos of that vehicle were sent to Green County and it was ruled out as the suspect vehicle.
- 05/18/26 – DeForest PD put out a WICAN seeking assistance identifying a felony theft suspect and vehicle. An LPR search identified a possible plate, which led to a previous Sun Prairie case (SP26-08980). The SP officer's arrest report had photos of the suspect that matched the DeForest suspect. Information passed on to DeForest PD.

- 07/20/26 (new) – Middleton PD sent out a WICAN about a stolen vehicle. SNPD received an LPR alert, located the vehicle and suspect, and jailed him on OMVWOC and Threats to LE.
- 07/26/26 (new) – LPR in Sun Prairie and Marshall used during stabbing investigation.

Investigations / Verification of Information

- 01/24/24 – Caller was followed from SP to Madison. Provided vehicle description and timeframe. Suspect vehicle found via Flock.
- 02/01/24 – Flock search located a vehicle en-route to Madison in reference to an infant death. This was prior to obtaining video from the driver's apartment complex showing their departure time.
- 03/14/24 – Caller reported her car possibly stolen. Flock showed it being towed by a tow company.
- 02/15/26 – LPR hit on vehicle regarding Infiniti thefts. Case information obtained.
- 02/21/26 – Caller reporting his vehicle missing. LPR showed it was towed. Information shared with vehicle owner.
- 02/23/26 – LPR utilized to confirm suspect vehicle was in the city on the date and time of a burglary/copper theft.
- 06/25/26 (new) – LPR used in investigation of multiple burglaries, auto thefts. Investigation continues.

Missing Person / Homicide Investigations

- 05/28/24 – Flock hit for a stolen vehicle. Vehicle located unoccupied. Two subjects detained nearby and determined to be related. Stolen gun, gun with auto-sear, MJ, and Rx pills seized, stolen vehicle recovered. Possible link for subjects to a Madison homicide.
- 06/23/24 – Flock alerted to a vehicle associated to a Madison PD homicide suspect. Vehicle located by an officer. SNPD and Madison PD set up surveillance. Madison left to pursue another ATL. SNPD cleared due to low staffing.
- 01/12/25 – Missing person reported. Vehicle of the person last known to be with the missing person captured by Flock on Portage Rd before and after her disappearance. Body later found near Flock cameras. Suspect charged with 1st degree intentional homicide.
- 02/13/26 – Callers concerned about elderly relative who left, has declining mental capabilities. Vehicle located by DCSO after nearby LPR hits. Subject checked on, returned home to family.
- (date partly cut off)/13/26 – LPR hit on a plate for a missing person. Vehicle and person located, welfare checked, reporting party and agency notified.
- 09/__/26 (new) – Attempted homicide in Madison. Involved vehicle hit LPR in Sun Prairie. Sun Prairie Officers located vehicle in Sun Prairie, assisted Madison with taking suspect into custody.

National ALPR Principles (Sept. 23 Senate hearing handout)

Handout from the Sun Prairie Police Department, received at the September 25 meeting. Highlighting is from the original. Part of the page break between the two sheets was not photographed.

09/23/26 Senate Judiciary Subcommittee on Crime and Counterterrorism hearing

- 13 principles released by national law enforcement and public safety organizations (International Association of Chiefs of Police, National Sheriff's Organization, National District Attorneys Association, National Fusion Center Association, and National High Intensity Drug Trafficking Areas, and more)
- Sun Prairie Police Department currently follows all 13 principles.
- **Written policies.** Every law enforcement agency using ALPR systems must adopt and enforce clear written policies governing authorized uses, access, documented queries, verification, retention, sharing, data security, auditing, and accountability.
- **Permitted uses.** ALPR must be used by trained and authorized law enforcement personnel only for legitimate law enforcement and public safety purposes.
- **Authorized access.** System access must be subject to strong controls, routine auditing, and accountability for misuse—and promptly removed when an individual's duties no longer require it.
- **Auditing and accountability.** Agencies must maintain access logs, conduct routine audits, and investigate potential misuse. Policy violations shall result in meaningful discipline, up to and including termination, consistent with applicable due process requirements. Suspected criminal misuse must be referred to the appropriate authorities for investigation and potential prosecution under applicable law.
- **Required training.** Personnel with access to ALPR information shall receive initial and ongoing training on permitted uses, verification requirements, privacy and security protections, and the consequences of misuse.
- **Documented queries.** ALPR queries must be tied to an official case number or another documented law enforcement or public safety purpose, with query and access logs maintained for auditing and accountability.
- **Verification of plate matches.** ALPR information must be appropriately verified before enforcement action is taken. An alert alone does not identify the driver, establish guilt, or replace other investigative work.
- **Confidentiality.** ALPR data collected for law enforcement purposes must remain appropriately protected from public disclosure. Comparable protections must apply when a private company stores or manages the information on behalf of a government agency.
- **Meaningful retention.** Retention policies must preserve information needed for legitimate investigations while protecting privacy and security. The significance of a vehicle may not become apparent until weeks or months after a crime, particularly when a victim's report is delayed or an investigation develops over time. Strong access controls, documented queries, and auditing are more effective safeguards against misuse than destroying potentially important investigative information after an arbitrarily short time period.
- **Responsible data sharing.** Law enforcement must be able to responsibly share and query ALPR information across jurisdictions because missing people, victims, dangerous offenders, and

criminal activity do not stop at jurisdictional boundaries. Sharing by agencies must be limited to legitimate law enforcement and public safety purposes and subject to appropriate controls and oversight. Government agencies must not sell access to ALPR data they collect.

- **Law enforcement access to non-governmental ALPR data.** The same restrictions, safeguards, and accountability requirements must apply to law enforcement's access to and use of ALPR data regardless of whether the data was collected by a government agency, a commercial provider, or another non-governmental entity.
- **Data security.** Law enforcement agencies, technology providers, and other entities that store or manage ALPR information must maintain strong security, access, and disclosure protections.

Flock Safety Contract (2023)

Printed copy of Sun Prairie PD's 2023 Flock Safety contract (DocuSign Envelope ID AF1416CF-A101-46BB-838F-6BB913164F8B). The order form pages are typed out below; the Master Services Agreement pages follow as photos.

Exhibit A — Order Form

- Customer: WI - Sun Prairie PD
- Legal Entity Name: WI - Sun Prairie PD
- Accounts Payable Email: msteffes@cityofsunprairie.com
- Address: 2598 W Main St, Sun Prairie, Wisconsin 53590
- Initial Term: 24 Months
- Renewal Term: 24 Months
- Payment Terms: Net 30
- Billing Frequency: Annual Plan – First Year Invoiced at Signing
- Retention Period: 30 Days

Hardware and Software Products (annual recurring amounts over subscription term)

- Flock Safety Platform — $15,000.00
- Flock Safety LPR Products: Flock Safety Falcon® — Included, quantity 5

Professional Services and One Time Purchases

- Professional Services – Existing Infrastructure Implementation Fee — $150.00 × 5 = $750.00
- Subtotal Year 1: $15,750.00
- Annual Recurring Subtotal: $15,000.00
- Estimated Tax: $0.00
- Contract Total: $30,750.00

"Taxes shown above are provided as an estimate. Actual taxes are the responsibility of the Customer. This Agreement will automatically renew for successive renewal terms of the greater of one year or the length set forth on the Order Form (each, a 'Renewal Term') unless either Party gives the other Party notice of non-renewal at least thirty (30) days prior to the end of the then-current term."

Billing Schedule

- Year 1, at contract signing: $15,750.00
- Annual recurring after Year 1: $15,000.00
- Contract total: $30,750.00 (tax not included)

Product and Services Description

- Flock Safety Falcon®: An infrastructure-free license plate reader camera that utilizes Vehicle Fingerprint® technology to capture vehicular attributes. The Term shall commence upon first installation and validation of Flock Hardware.
- Installation on existing infrastructure: One-time Professional Services engagement. Includes site & safety assessment, camera setup & testing, and shipping & handling in accordance with the Flock Safety Advanced Implementation Service Brief.

- Professional Services – Standard Implementation Fee: One-time Professional Services engagement. Includes site and safety assessment, camera setup and testing, and shipping and handling in accordance with the Flock Safety Standard Implementation Service Brief.
- Professional Services – Advanced Implementation Fee: One-time Professional Services engagement. Includes site & safety assessment, camera setup & testing, and shipping & handling in accordance with the Flock Safety Advanced Implementation Service Brief.

FlockOS Features (Package: Essentials)

- Community Cameras (Full Access): Access to all privately owned Flock devices within your jurisdiction that have been shared with you.
- Unlimited Users: Unlimited users for FlockOS.
- State Network (LP Lookup Only): Allows agencies to look up license plates on all cameras opted in to the statewide Flock network.
- Nationwide Network (LP Lookup Only): Allows agencies to look up license plates on all cameras opted in to the nationwide Flock network.
- Direct Share – Surrounding Jurisdiction (Full Access): Access to all Flock devices owned by law enforcement that have been directly shared with you. Have ability to search by vehicle fingerprint, receive hot list alerts, and view devices on the map.
- Time & Location Based Search: Search full, partial, and temporary plates by time at particular device locations.
- License Plate Lookup: Look up specific license plate location history captured on Flock devices.
- Vehicle Fingerprint Search: Search footage using Vehicle Fingerprint™ technology. Access vehicle type, make, color, license plate state, missing / covered plates, and other unique features like bumper stickers, decals, and roof racks.
- Flock Insights/Analytics page: Reporting tool to help administrators manage their LPR program with device performance data, user and network audits, plate read reports, hot list alert reports, event logs, and outcome reports.
- ESRI Based Map Interface: Flock Safety's maps are powered by ESRI, which offers the ability for 3D visualization, viewing of floor plans, and layering of external GIS data, such as City infrastructure (i.e., public facilities, transit systems, utilities), Boundary mapping (i.e., precincts, county lines, beat maps), and Interior floor plans (i.e., hospitals, corporate campuses, universities).
- Real-Time NCIC Alerts on Flock ALPR Cameras: Alert sent when a vehicle entered into the NCIC crime database passes by a Flock camera.
- Unlimited Custom Hot Lists: Ability to add a suspect's license plate to a custom list and get alerted when it passes by a Flock camera.

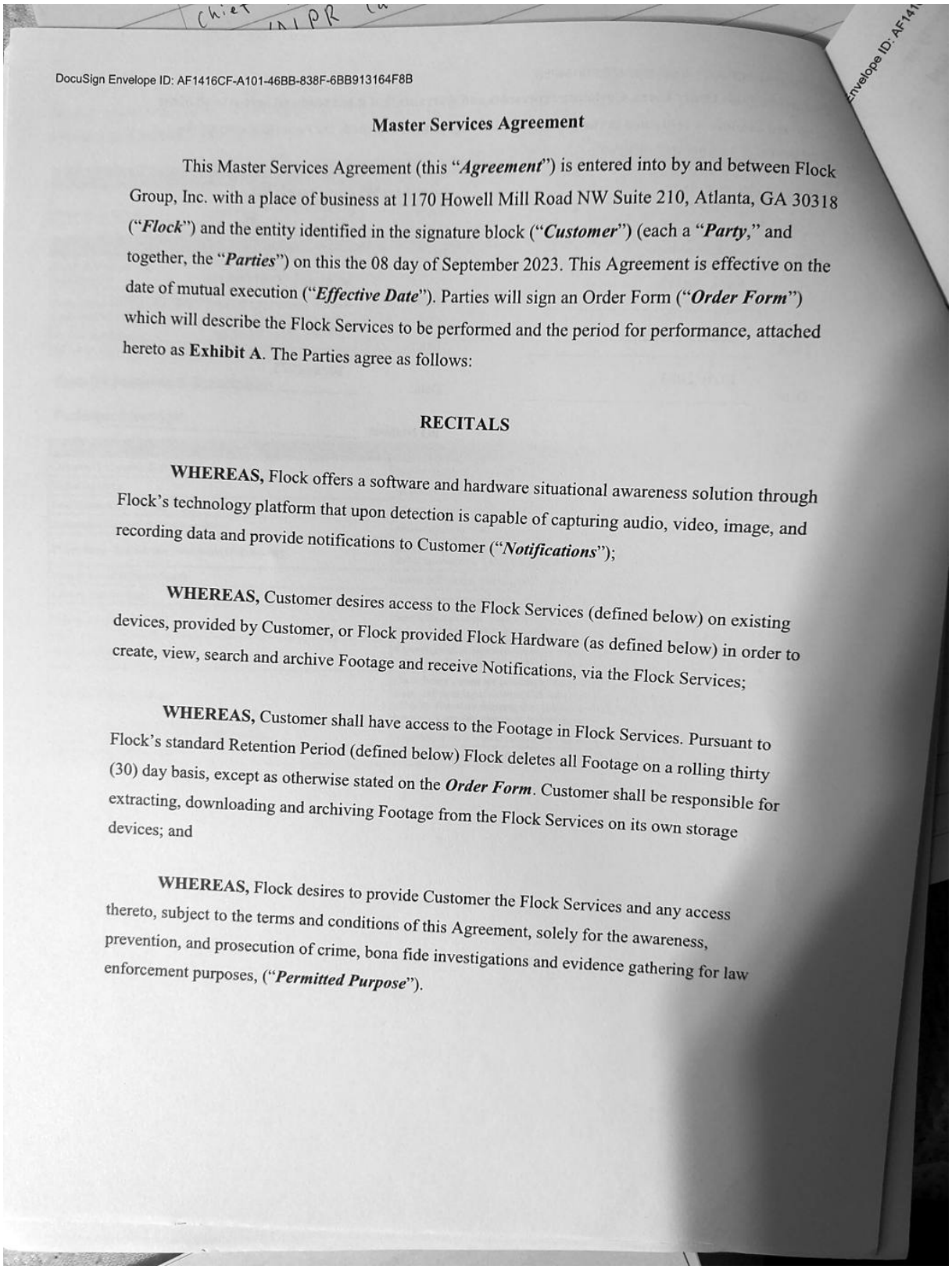
Signatures

"By executing this Order Form, Customer represents and warrants that it has read and agrees to all of the terms and conditions contained in the Master Services Agreement attached."

- Flock Group, Inc.: Mark Smith, General Counsel — 10/6/2023
- Customer, WI - Sun Prairie PD: Michael Steffes, Chief of Police — 10/6/2023

Master Services Agreement

Entered into by Flock Group, Inc. (1170 Howell Mill Road NW Suite 210, Atlanta, GA 30318) and the Customer on September 8, 2023. Key recital: "Pursuant to Flock's standard Retention Period (defined below) Flock deletes all Footage on a rolling thirty (30) day basis, except as otherwise stated on the Order Form." Permitted Purpose: "solely for the awareness, prevention, and prosecution of crime, bona fide investigations and evidence gathering for law enforcement purposes."



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Master Services Agreement

This Master Services Agreement (this "***Agreement***") is entered into by and between Flock Group, Inc. with a place of business at 1170 Howell Mill Road NW Suite 210, Atlanta, GA 30318 ("***Flock***") and the entity identified in the signature block ("***Customer***") (each a "***Party***," and together, the "***Parties***") on this the 08 day of September 2023. This Agreement is effective on the date of mutual execution ("***Effective Date***"). Parties will sign an Order Form ("***Order Form***") which will describe the Flock Services to be performed and the period for performance, attached hereto as **Exhibit A**. The Parties agree as follows:

RECITALS

WHEREAS, Flock offers a software and hardware situational awareness solution through Flock's technology platform that upon detection is capable of capturing audio, video, image, and recording data and provide notifications to Customer ("***Notifications***");

WHEREAS, Customer desires access to the Flock Services (defined below) on existing devices, provided by Customer, or Flock provided Flock Hardware (as defined below) in order to create, view, search and archive Footage and receive Notifications, via the Flock Services;

WHEREAS, Customer shall have access to the Footage in Flock Services. Pursuant to Flock's standard Retention Period (defined below) Flock deletes all Footage on a rolling thirty (30) day basis, except as otherwise stated on the ***Order Form***. Customer shall be responsible for extracting, downloading and archiving Footage from the Flock Services on its own storage devices; and

WHEREAS, Flock desires to provide Customer the Flock Services and any access thereto, subject to the terms and conditions of this Agreement, solely for the awareness, prevention, and prosecution of crime, bona fide investigations and evidence gathering for law enforcement purposes, ("***Permitted Purpose***").

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AGREEMENT

NOW, THEREFORE, Flock and Customer agree that this Agreement, and any Order Form, purchase orders, statements of work, product addenda, or the like, attached hereto as exhibits and incorporated by reference, constitute the complete and exclusive statement of the Agreement of the Parties with respect to the subject matter of this Agreement, and replace and supersede all prior agreements, term sheets, purchase orders, correspondence, oral or written communications and negotiations by and between the Parties.

1. DEFINITIONS

Certain capitalized terms, not otherwise defined herein, have the meanings set forth or cross-referenced in this Section 1.

1.1 "***Anonymized Data***" means Customer Data permanently stripped of identifying details and any potential personally identifiable information, by commercially available standards which irreversibly alters data in such a way that a data subject (i.e., individual person or entity) can no longer be identified directly or indirectly.

1.2 "***Authorized End User(s)***" means any individual employees, agents, or contractors of Customer accessing or using the Services, under the rights granted to Customer pursuant to this Agreement.

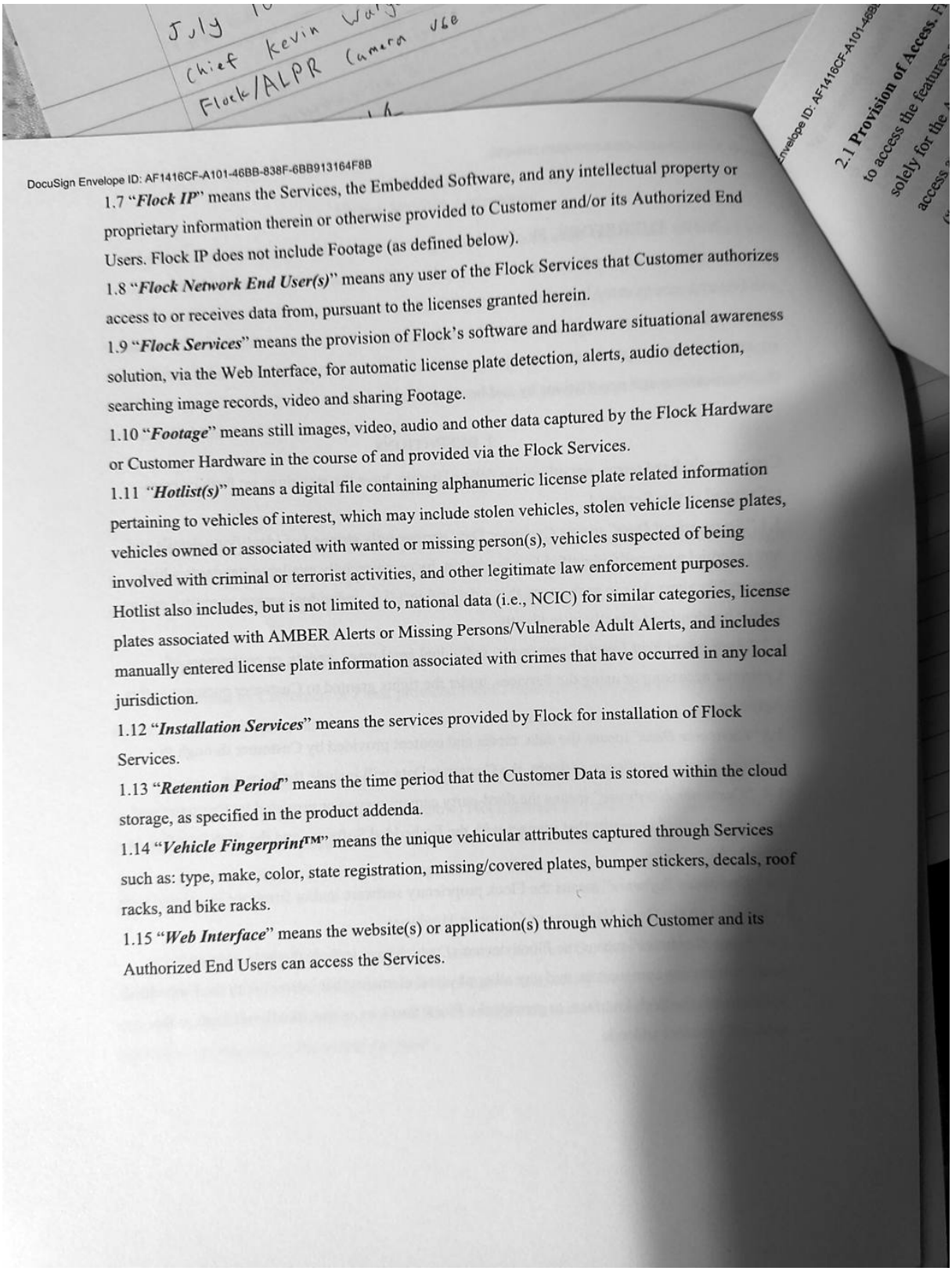
1.3 "***Customer Data***" means the data, media and content provided by Customer through the Services. For the avoidance of doubt, the Customer Data will include the Footage.

1.4. "***Customer Hardware***" means the third-party camera owned or provided by Customer and any other physical elements that interact with the Embedded Software and the Web Interface to provide the Services.

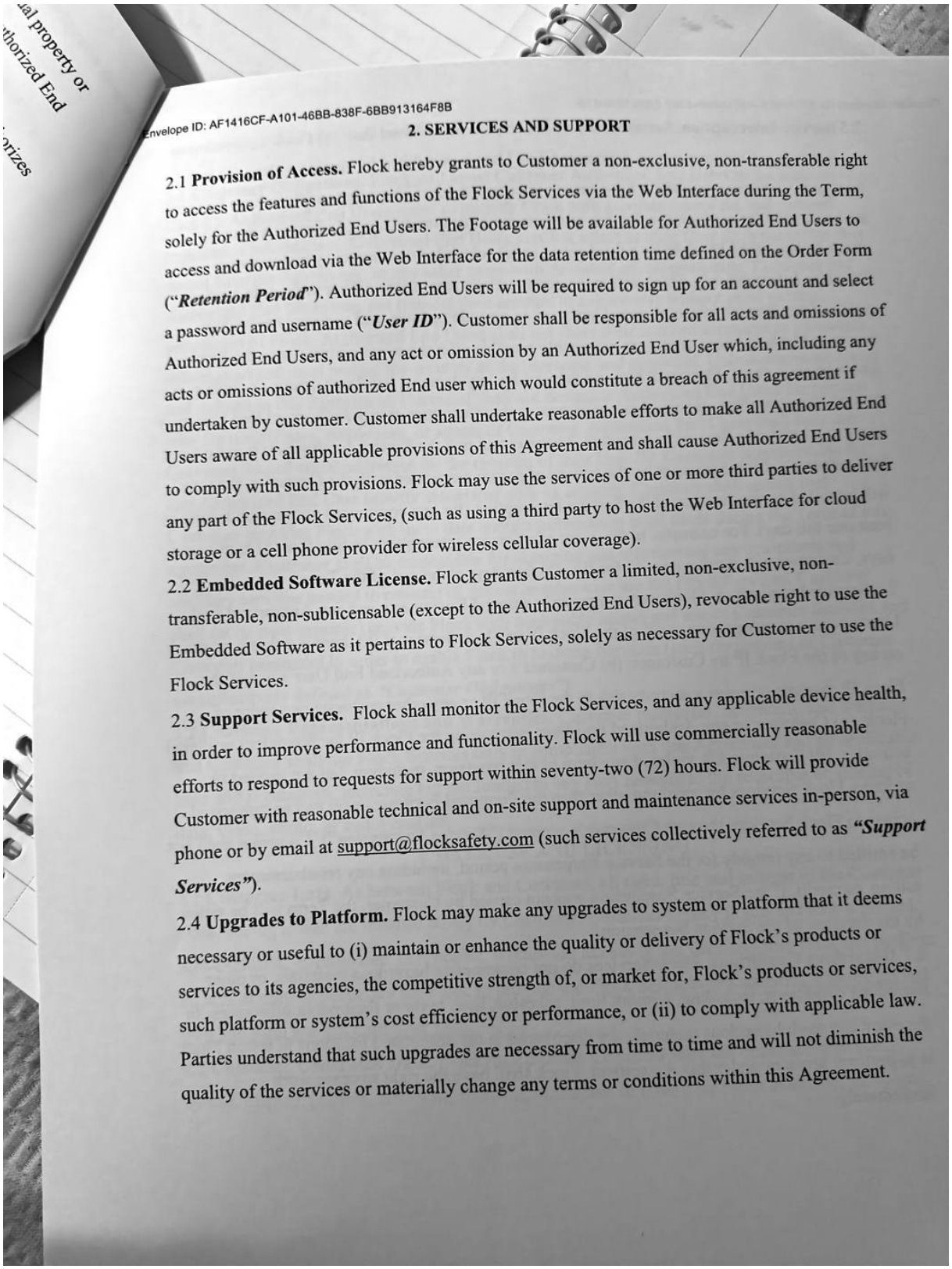
1.5 "***Embedded Software***" means the Flock proprietary software and/or firmware integrated with or installed on the Flock Hardware or Customer Hardware.

1.6 "***Flock Hardware***" means the Flock device(s), which may include the pole, clamps, solar panel, installation components, and any other physical elements that interact with the Embedded Software and the Web Interface, to provide the Flock Services as specifically set forth in the applicable product addenda.

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2. SERVICES AND SUPPORT

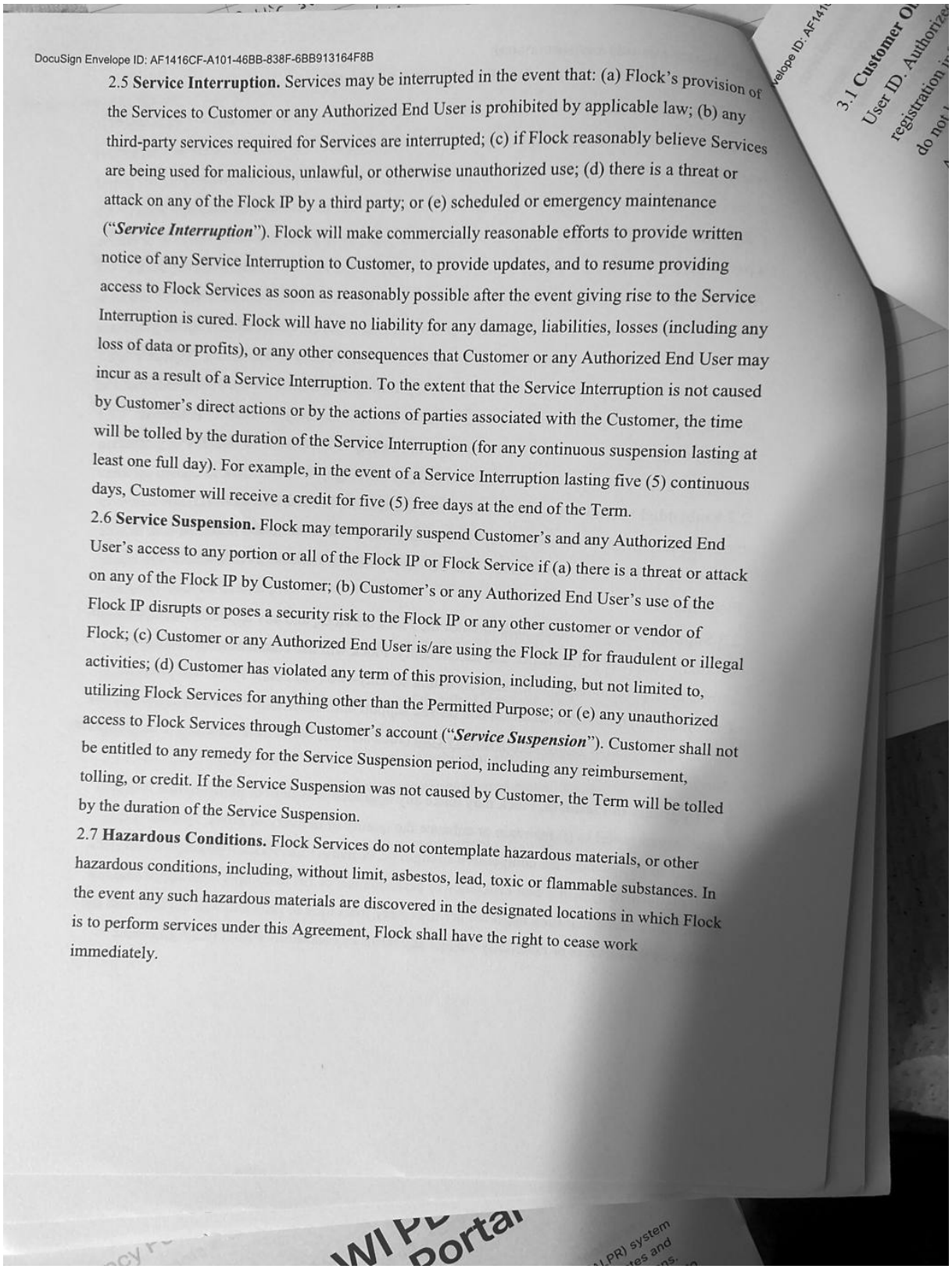
2.1 **Provision of Access.** Flock hereby grants to Customer a non-exclusive, non-transferable right to access the features and functions of the Flock Services via the Web Interface during the Term, solely for the Authorized End Users. The Footage will be available for Authorized End Users to access and download via the Web Interface for the data retention time defined on the Order Form ("***Retention Period***"). Authorized End Users will be required to sign up for an account and select a password and username ("***User ID***"). Customer shall be responsible for all acts and omissions of Authorized End Users, and any act or omission by an Authorized End User which, including any acts or omissions of authorized End user which would constitute a breach of this agreement if undertaken by customer. Customer shall undertake reasonable efforts to make all Authorized End Users aware of all applicable provisions of this Agreement and shall cause Authorized End Users to comply with such provisions. Flock may use the services of one or more third parties to deliver any part of the Flock Services, (such as using a third party to host the Web Interface for cloud storage or a cell phone provider for wireless cellular coverage).

2.2 **Embedded Software License.** Flock grants Customer a limited, non-exclusive, non-transferable, non-sublicensable (except to the Authorized End Users), revocable right to use the Embedded Software as it pertains to Flock Services, solely as necessary for Customer to use the Flock Services.

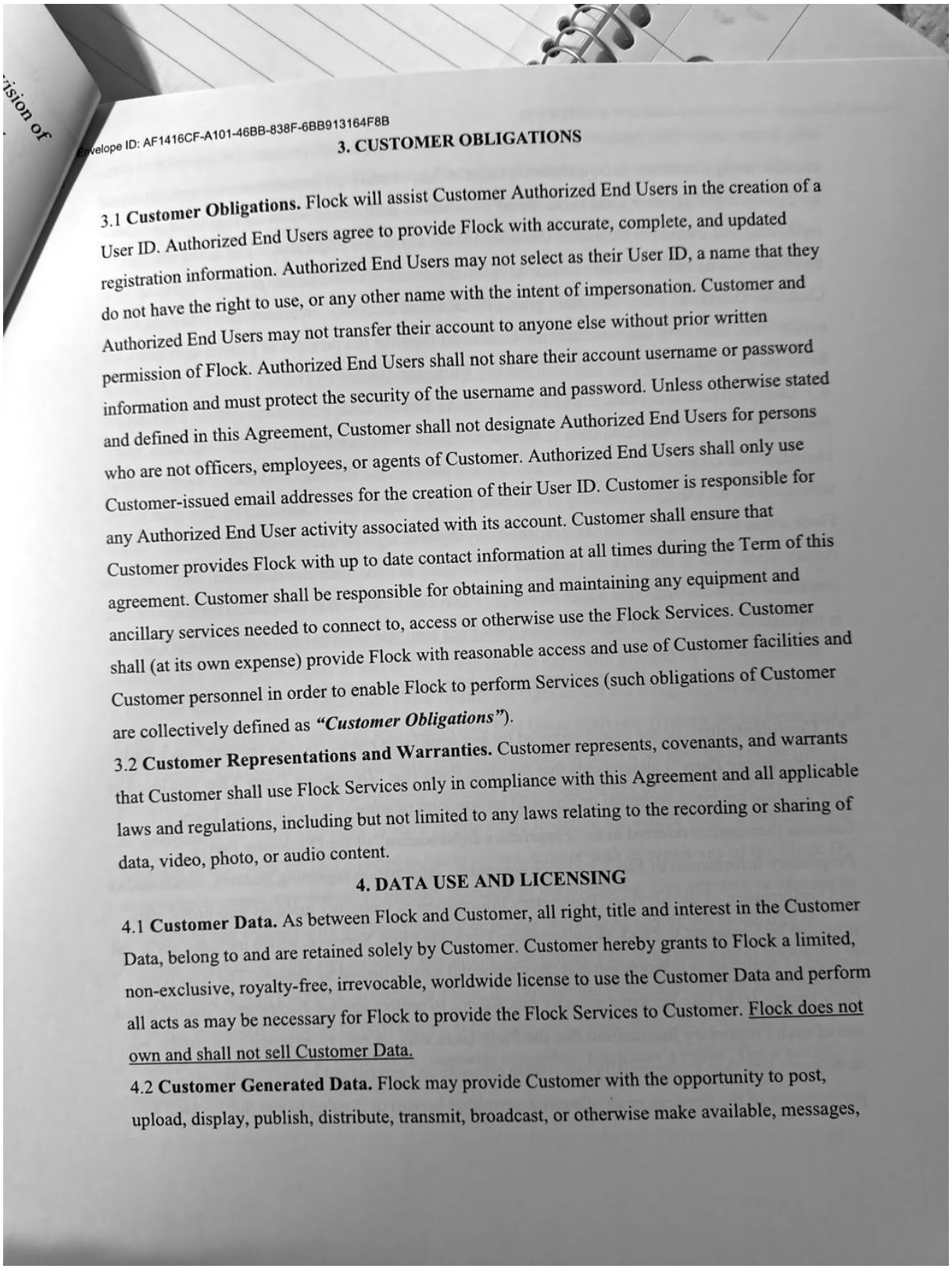
2.3 **Support Services.** Flock shall monitor the Flock Services, and any applicable device health, in order to improve performance and functionality. Flock will use commercially reasonable efforts to respond to requests for support within seventy-two (72) hours. Flock will provide Customer with reasonable technical and on-site support and maintenance services in-person, via phone or by email at support@flocksafety.com (such services collectively referred to as ***"Support Services"***).

2.4 **Upgrades to Platform.** Flock may make any upgrades to system or platform that it deems necessary or useful to (i) maintain or enhance the quality or delivery of Flock's products or services to its agencies, the competitive strength of, or market for, Flock's products or services, such platform or system's cost efficiency or performance, or (ii) to comply with applicable law. Parties understand that such upgrades are necessary from time to time and will not diminish the quality of the services or materially change any terms or conditions within this Agreement.

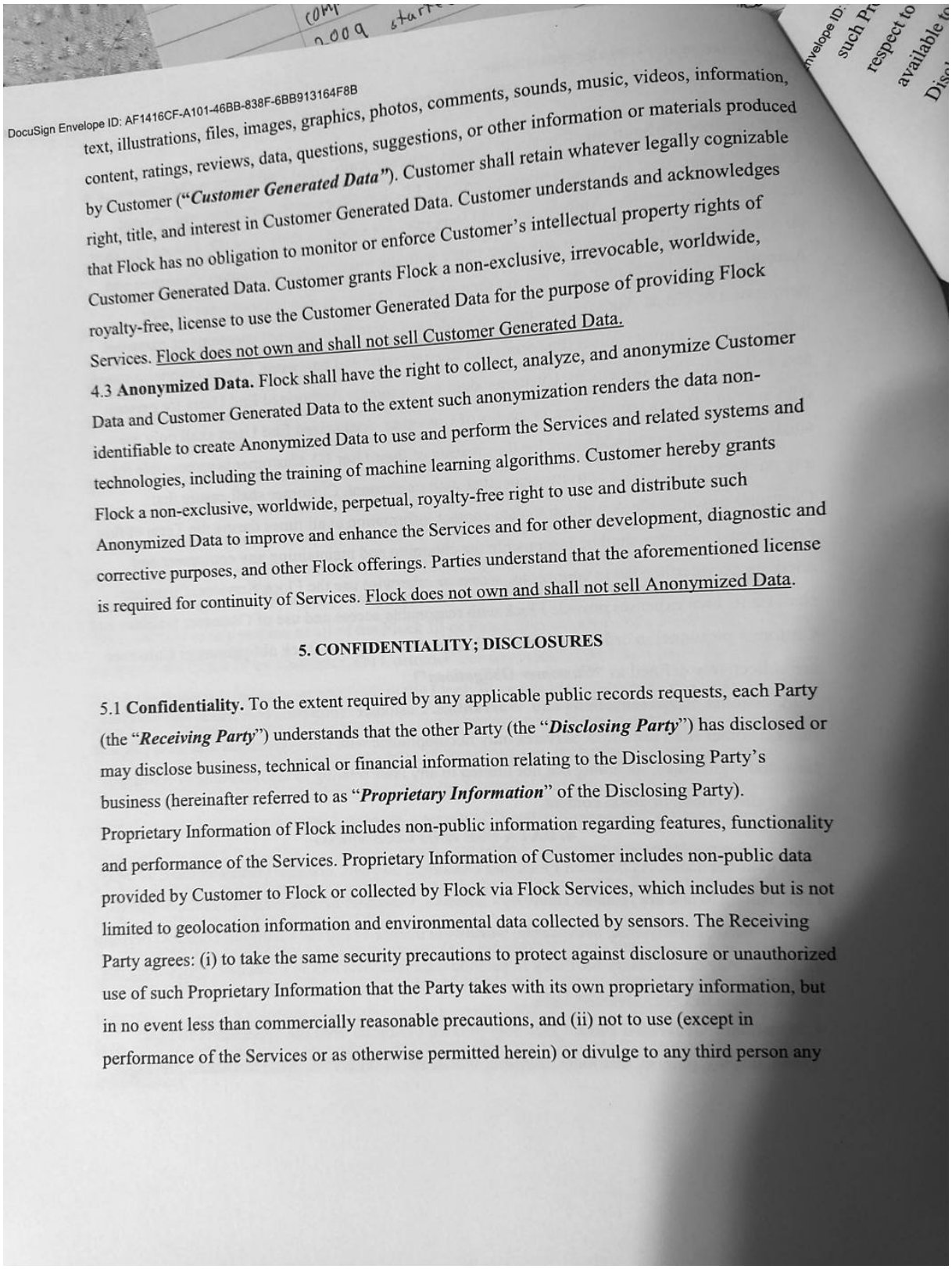
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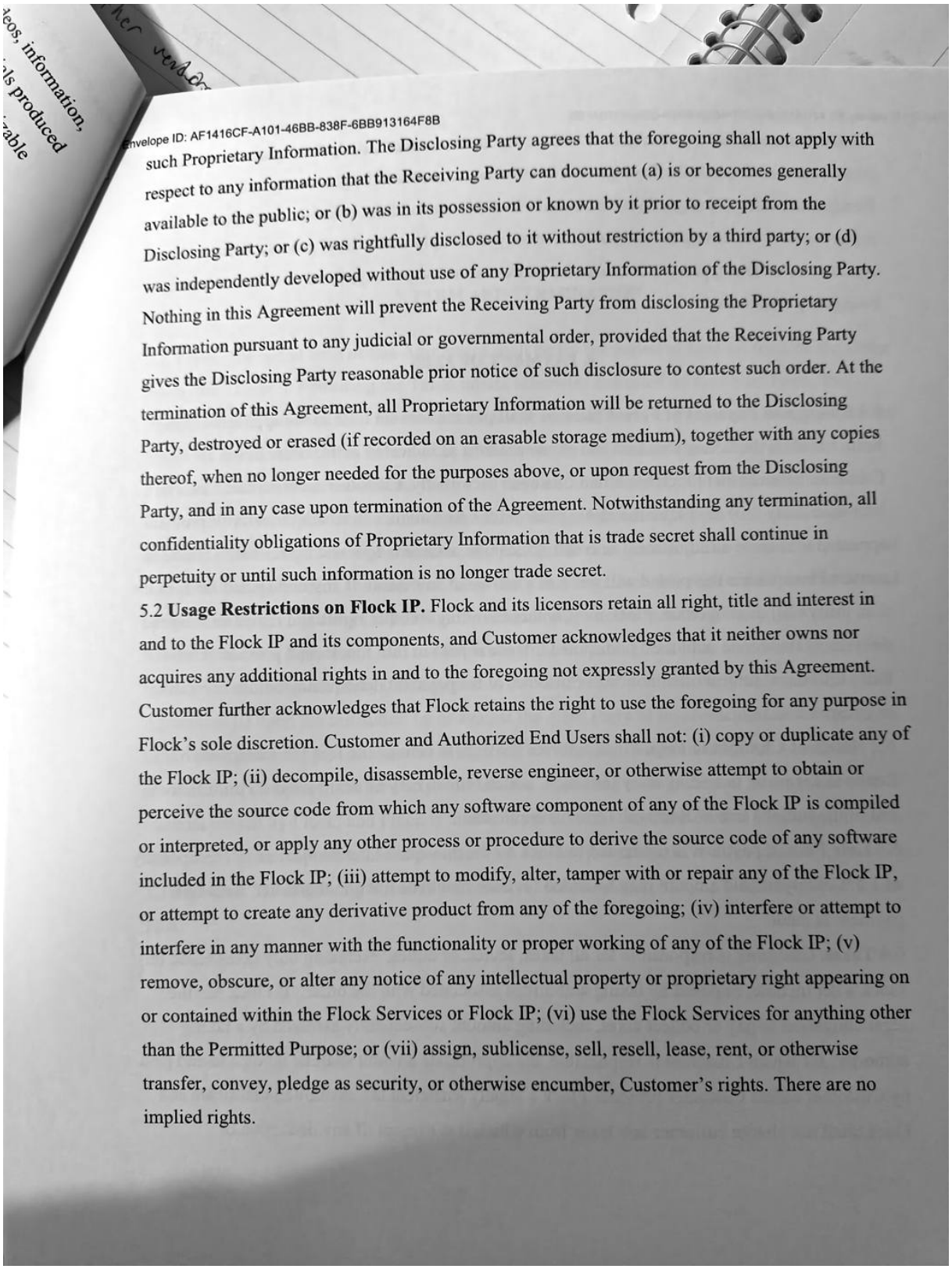
text, illustrations, files, images, graphics, photos, comments, sounds, music, videos, information, content, ratings, reviews, data, questions, suggestions, or other information or materials produced by Customer ("***Customer Generated Data***"). Customer shall retain whatever legally cognizable right, title, and interest in Customer Generated Data. Customer understands and acknowledges that Flock has no obligation to monitor or enforce Customer's intellectual property rights of Customer Generated Data. Customer grants Flock a non-exclusive, irrevocable, worldwide, royalty-free, license to use the Customer Generated Data for the purpose of providing Flock Services. Flock does not own and shall not sell Customer Generated Data.

4.3 **Anonymized Data.** Flock shall have the right to collect, analyze, and anonymize Customer Data and Customer Generated Data to the extent such anonymization renders the data non-identifiable to create Anonymized Data to use and perform the Services and related systems and technologies, including the training of machine learning algorithms. Customer hereby grants Flock a non-exclusive, worldwide, perpetual, royalty-free right to use and distribute such Anonymized Data to improve and enhance the Services and for other development, diagnostic and corrective purposes, and other Flock offerings. Parties understand that the aforementioned license is required for continuity of Services. Flock does not own and shall not sell Anonymized Data.

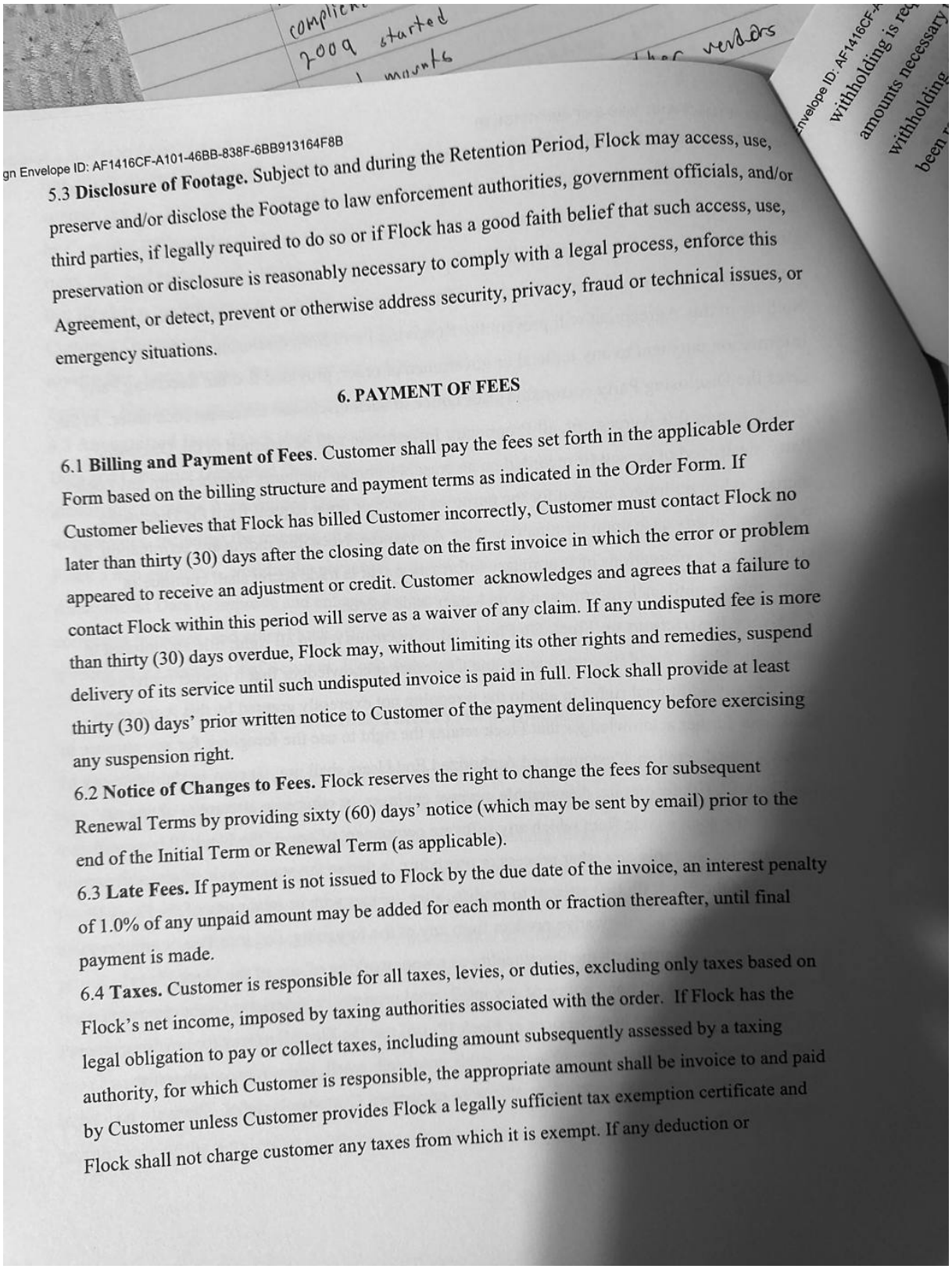
5. CONFIDENTIALITY; DISCLOSURES

5.1 **Confidentiality.** To the extent required by any applicable public records requests, each Party (the "***Receiving Party***") understands that the other Party (the "***Disclosing Party***") has disclosed or may disclose business, technical or financial information relating to the Disclosing Party's business (hereinafter referred to as "***Proprietary Information***" of the Disclosing Party). Proprietary Information of Flock includes non-public information regarding features, functionality and performance of the Services. Proprietary Information of Customer includes non-public data provided by Customer to Flock or collected by Flock via Flock Services, which includes but is not limited to geolocation information and environmental data collected by sensors. The Receiving Party agrees: (i) to take the same security precautions to protect against disclosure or unauthorized use of such Proprietary Information that the Party takes with its own proprietary information, but in no event less than commercially reasonable precautions, and (ii) not to use (except in performance of the Services or as otherwise permitted herein) or divulge to any third person any

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5.3 **Disclosure of Footage.** Subject to and during the Retention Period, Flock may access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties, if legally required to do so or if Flock has a good faith belief that such access, use, preservation or disclosure is reasonably necessary to comply with a legal process, enforce this Agreement, or detect, prevent or otherwise address security, privacy, fraud or technical issues, or emergency situations.

6. PAYMENT OF FEES

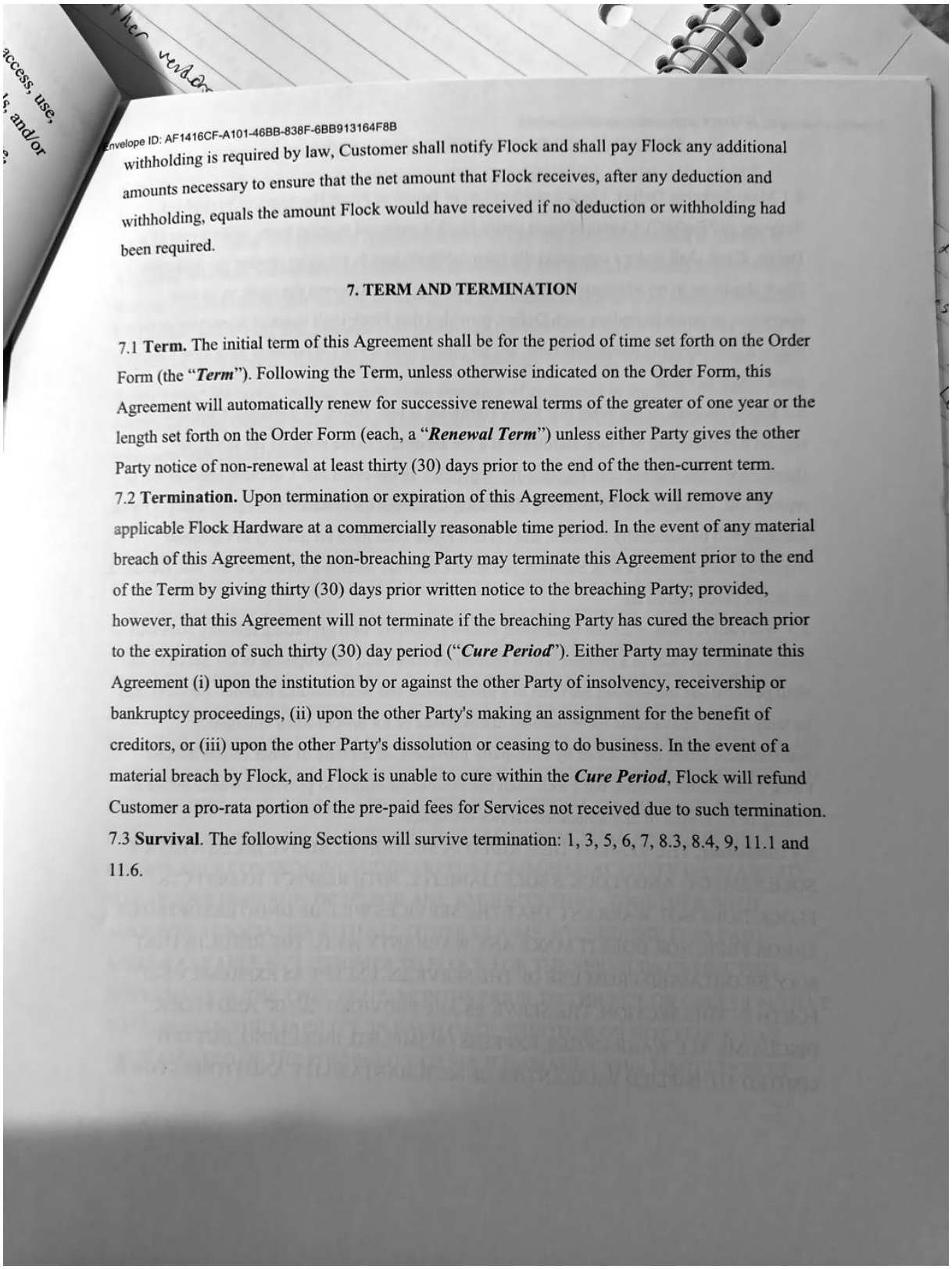
6.1 **Billing and Payment of Fees**. Customer shall pay the fees set forth in the applicable Order Form based on the billing structure and payment terms as indicated in the Order Form. If Customer believes that Flock has billed Customer incorrectly, Customer must contact Flock no later than thirty (30) days after the closing date on the first invoice in which the error or problem appeared to receive an adjustment or credit. Customer acknowledges and agrees that a failure to contact Flock within this period will serve as a waiver of any claim. If any undisputed fee is more than thirty (30) days overdue, Flock may, without limiting its other rights and remedies, suspend delivery of its service until such undisputed invoice is paid in full. Flock shall provide at least thirty (30) days' prior written notice to Customer of the payment delinquency before exercising any suspension right.

6.2 **Notice of Changes to Fees.** Flock reserves the right to change the fees for subsequent Renewal Terms by providing sixty (60) days' notice (which may be sent by email) prior to the end of the Initial Term or Renewal Term (as applicable).

6.3 **Late Fees.** If payment is not issued to Flock by the due date of the invoice, an interest penalty of 1.0% of any unpaid amount may be added for each month or fraction thereafter, until final payment is made.

6.4 **Taxes.** Customer is responsible for all taxes, levies, or duties, excluding only taxes based on Flock's net income, imposed by taxing authorities associated with the order. If Flock has the legal obligation to pay or collect taxes, including amount subsequently assessed by a taxing authority, for which Customer is responsible, the appropriate amount shall be invoice to and paid by Customer unless Customer provides Flock a legally sufficient tax exemption certificate and Flock shall not charge customer any taxes from which it is exempt. If any deduction or

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withholding is required by law, Customer shall notify Flock and shall pay Flock any additional amounts necessary to ensure that the net amount that Flock receives, after any deduction and withholding, equals the amount Flock would have received if no deduction or withholding had been required.

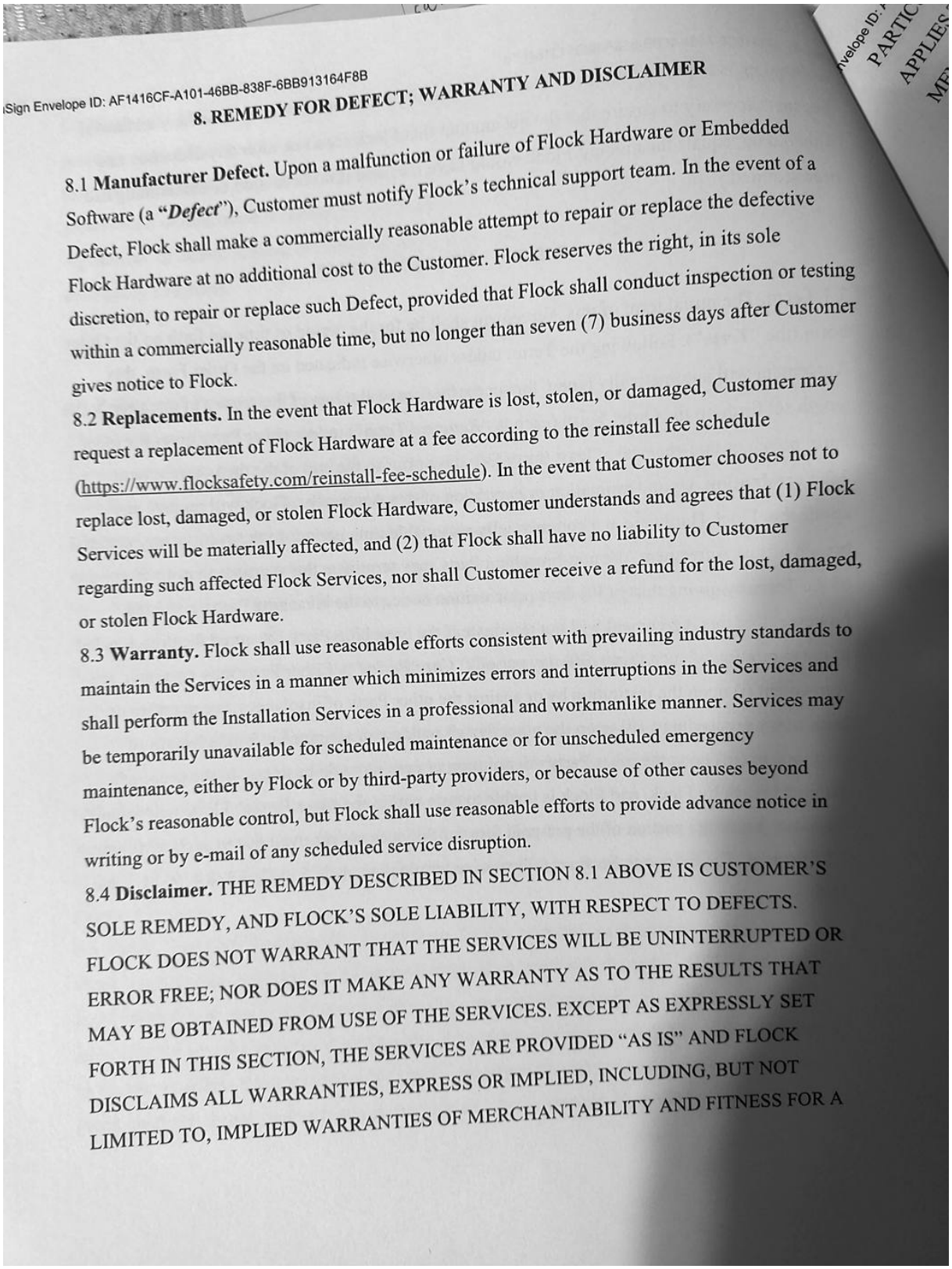
7. TERM AND TERMINATION

7.1 **Term.** The initial term of this Agreement shall be for the period of time set forth on the Order Form (the "***Term***"). Following the Term, unless otherwise indicated on the Order Form, this Agreement will automatically renew for successive renewal terms of the greater of one year or the length set forth on the Order Form (each, a "***Renewal Term***") unless either Party gives the other Party notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

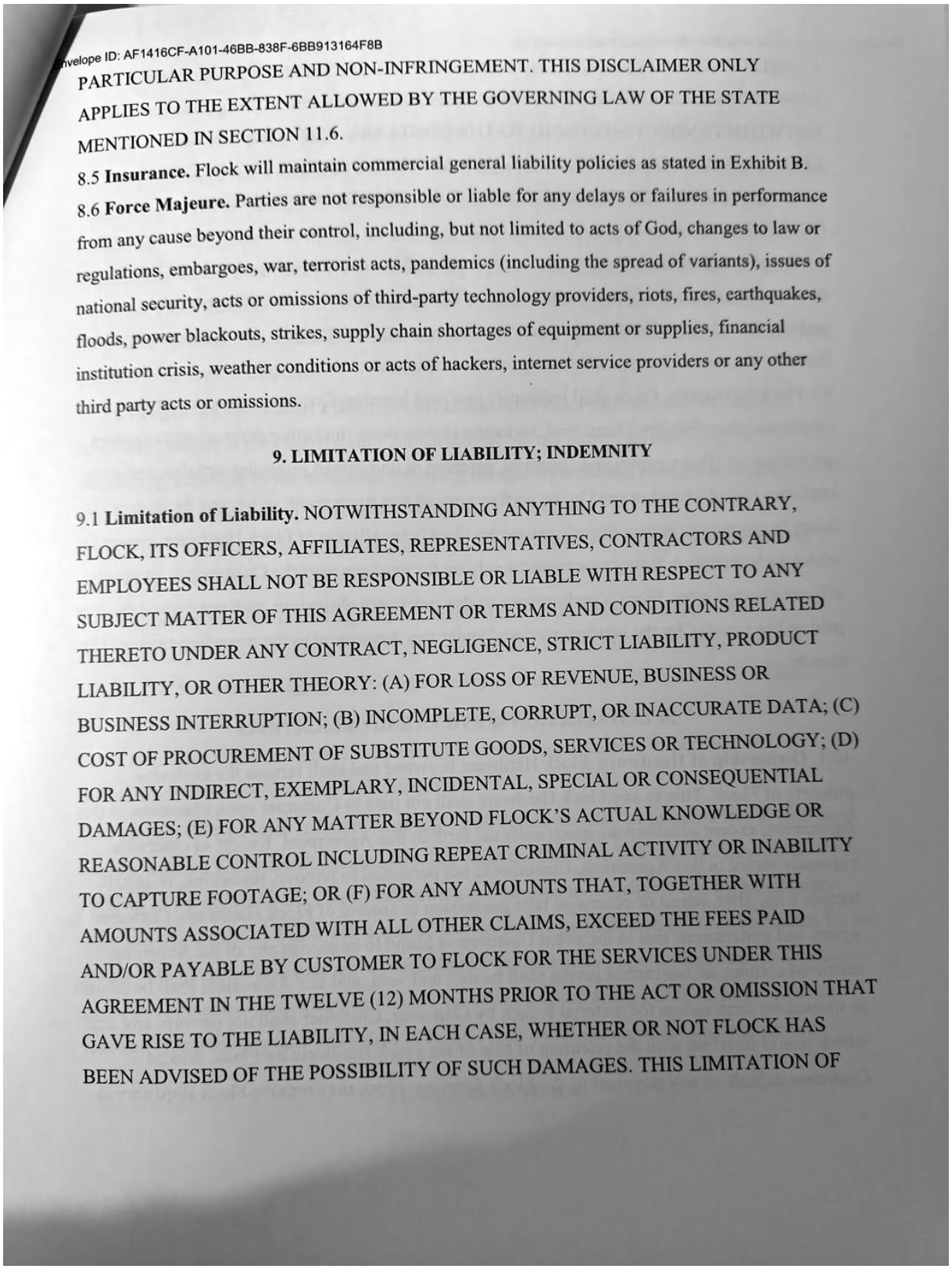
7.2 **Termination.** Upon termination or expiration of this Agreement, Flock will remove any applicable Flock Hardware at a commercially reasonable time period. In the event of any material breach of this Agreement, the non-breaching Party may terminate this Agreement prior to the end of the Term by giving thirty (30) days prior written notice to the breaching Party; provided, however, that this Agreement will not terminate if the breaching Party has cured the breach prior to the expiration of such thirty (30) day period ("***Cure Period***"). Either Party may terminate this Agreement (i) upon the institution by or against the other Party of insolvency, receivership or bankruptcy proceedings, (ii) upon the other Party's making an assignment for the benefit of creditors, or (iii) upon the other Party's dissolution or ceasing to do business. In the event of a material breach by Flock, and Flock is unable to cure within the ***Cure Period***, Flock will refund Customer a pro-rata portion of the pre-paid fees for Services not received due to such termination.

7.3 **Survival**. The following Sections will survive termination: 1, 3, 5, 6, 7, 8.3, 8.4, 9, 11.1 and 11.6.

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PARTICULAR PURPOSE AND NON-INFRINGEMENT. THIS DISCLAIMER ONLY APPLIES TO THE EXTENT ALLOWED BY THE GOVERNING LAW OF THE STATE MENTIONED IN SECTION 11.6.

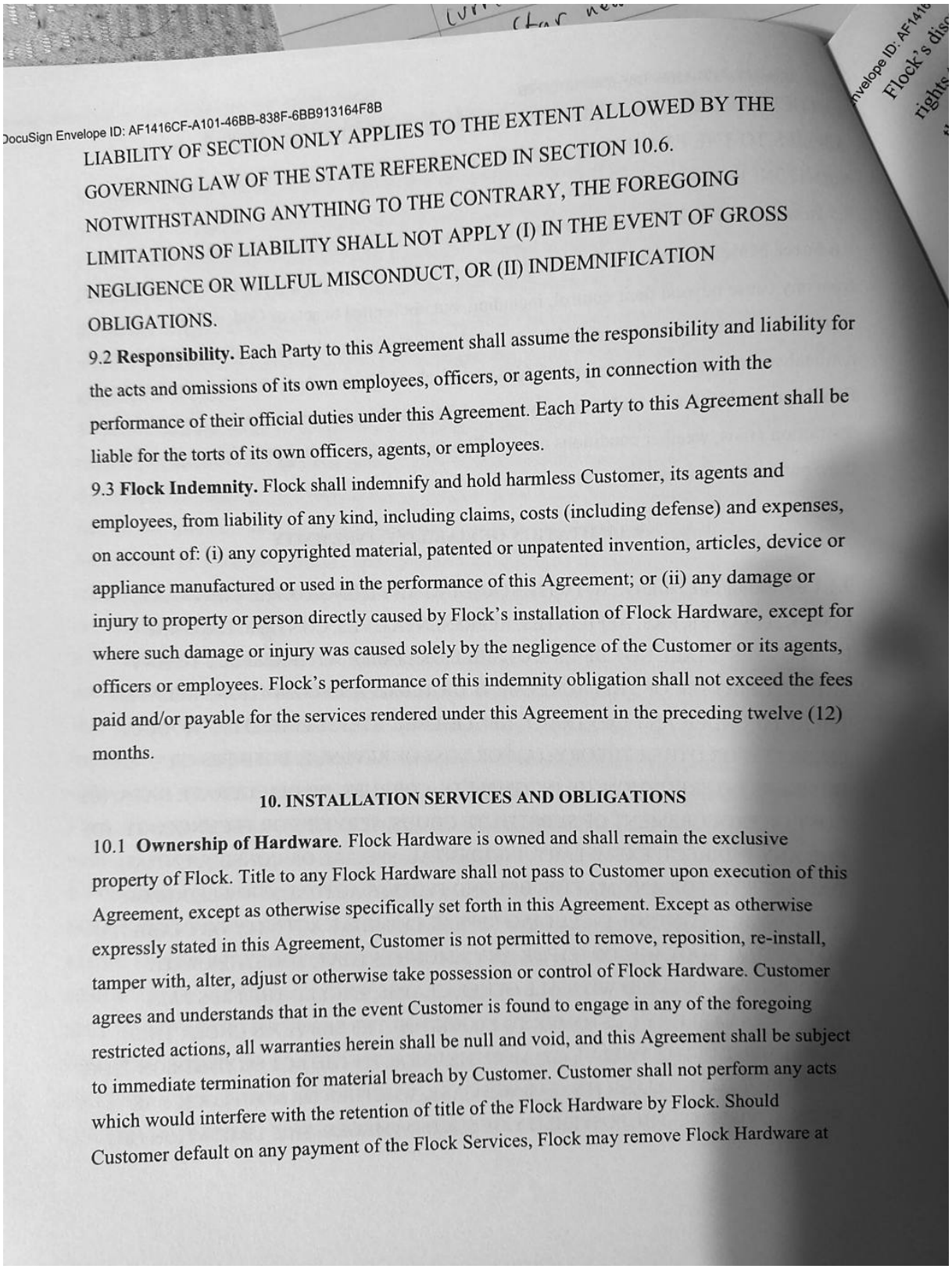
8.5 **Insurance.** Flock will maintain commercial general liability policies as stated in Exhibit B.

8.6 **Force Majeure.** Parties are not responsible or liable for any delays or failures in performance from any cause beyond their control, including, but not limited to acts of God, changes to law or regulations, embargoes, war, terrorist acts, pandemics (including the spread of variants), issues of national security, acts or omissions of third-party technology providers, riots, fires, earthquakes, floods, power blackouts, strikes, supply chain shortages of equipment or supplies, financial institution crisis, weather conditions or acts of hackers, internet service providers or any other third party acts or omissions.

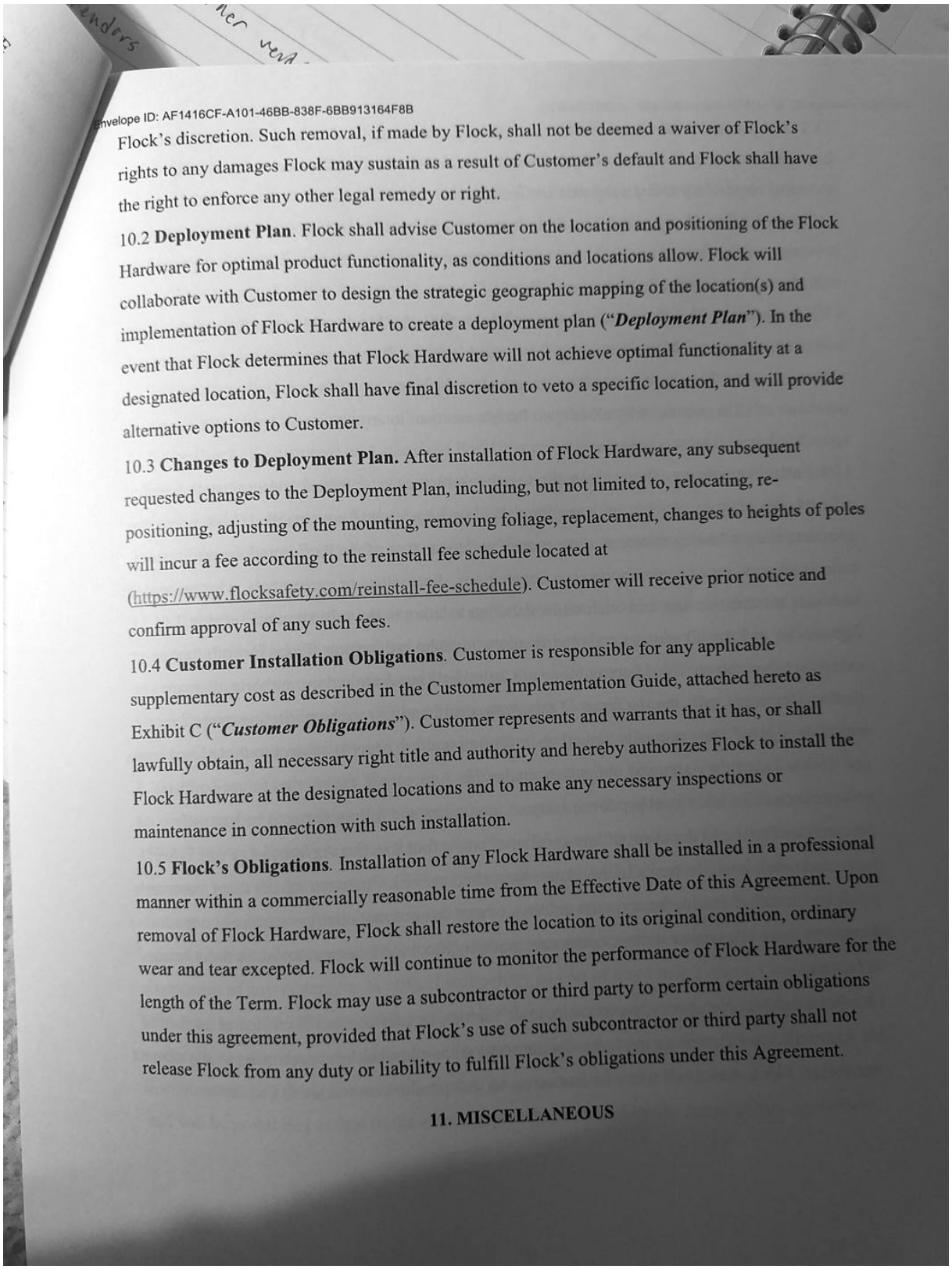
9. LIMITATION OF LIABILITY; INDEMNITY

9.1 **Limitation of Liability.** NOTWITHSTANDING ANYTHING TO THE CONTRARY, FLOCK, ITS OFFICERS, AFFILIATES, REPRESENTATIVES, CONTRACTORS AND EMPLOYEES SHALL NOT BE RESPONSIBLE OR LIABLE WITH RESPECT TO ANY SUBJECT MATTER OF THIS AGREEMENT OR TERMS AND CONDITIONS RELATED THERETO UNDER ANY CONTRACT, NEGLIGENCE, STRICT LIABILITY, PRODUCT LIABILITY, OR OTHER THEORY: (A) FOR LOSS OF REVENUE, BUSINESS OR BUSINESS INTERRUPTION; (B) INCOMPLETE, CORRUPT, OR INACCURATE DATA; (C) COST OF PROCUREMENT OF SUBSTITUTE GOODS, SERVICES OR TECHNOLOGY; (D) FOR ANY INDIRECT, EXEMPLARY, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES; (E) FOR ANY MATTER BEYOND FLOCK'S ACTUAL KNOWLEDGE OR REASONABLE CONTROL INCLUDING REPEAT CRIMINAL ACTIVITY OR INABILITY TO CAPTURE FOOTAGE; OR (F) FOR ANY AMOUNTS THAT, TOGETHER WITH AMOUNTS ASSOCIATED WITH ALL OTHER CLAIMS, EXCEED THE FEES PAID AND/OR PAYABLE BY CUSTOMER TO FLOCK FOR THE SERVICES UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRIOR TO THE ACT OR OMISSION THAT GAVE RISE TO THE LIABILITY, IN EACH CASE, WHETHER OR NOT FLOCK HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THIS LIMITATION OF

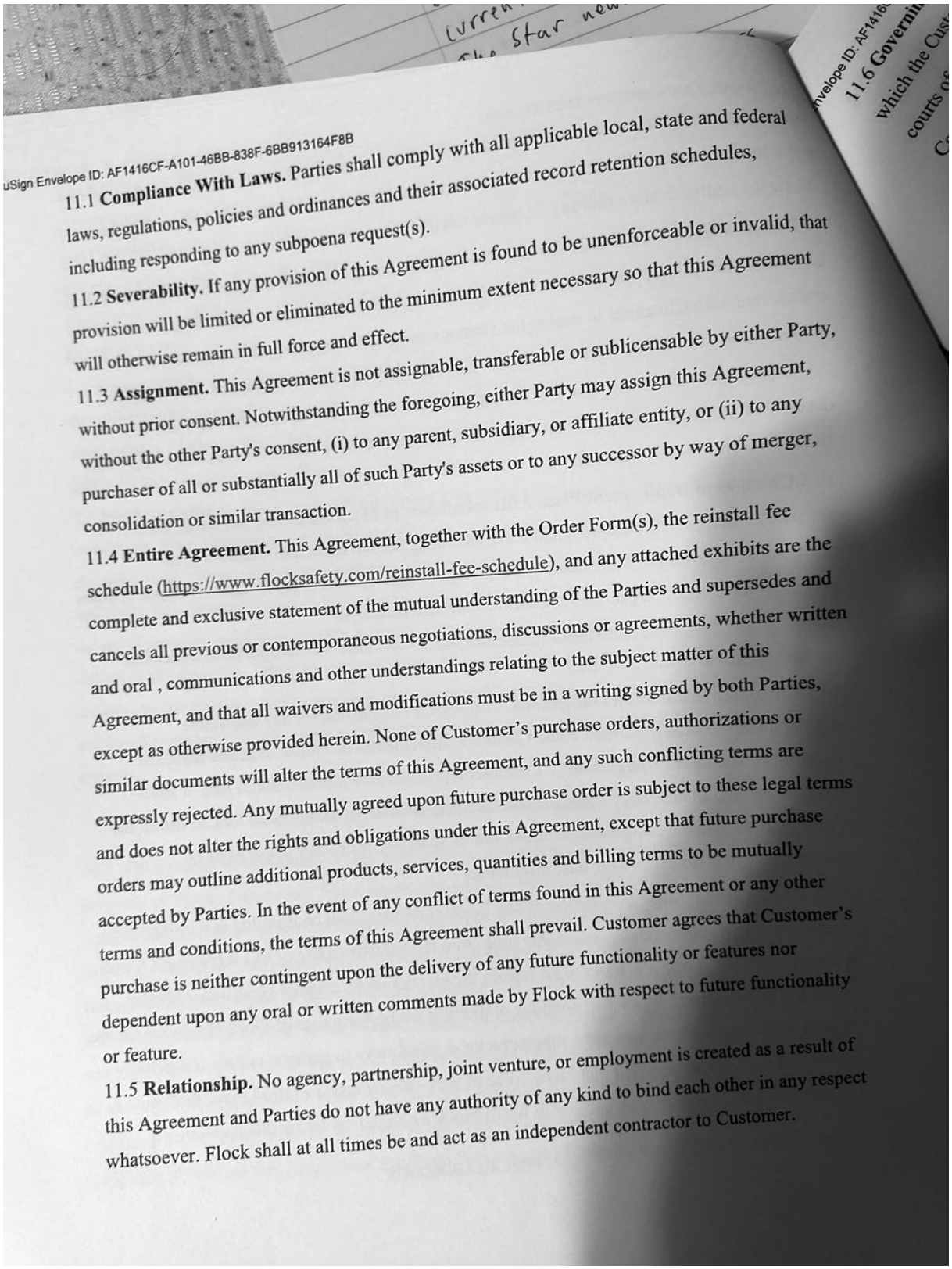
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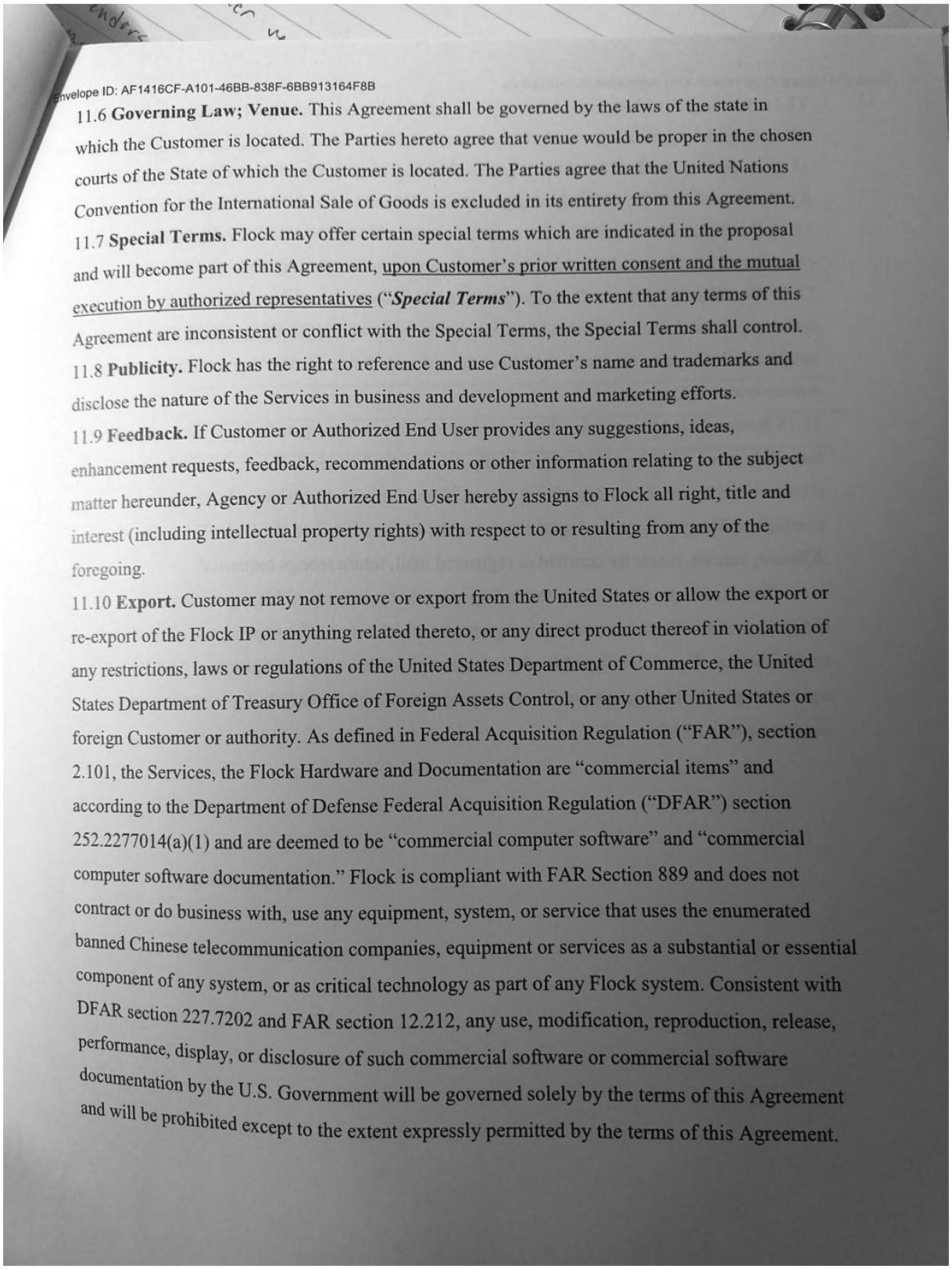
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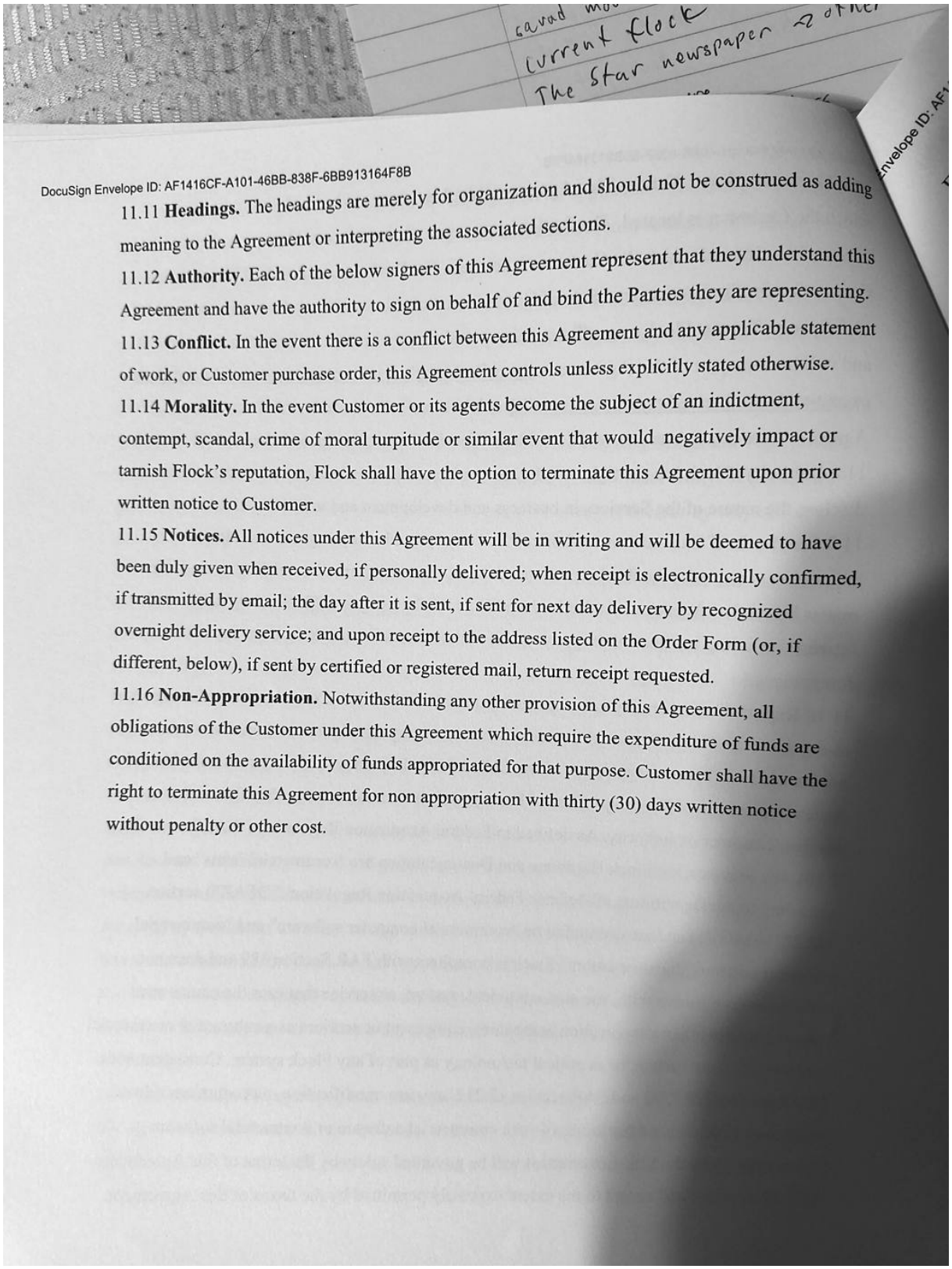
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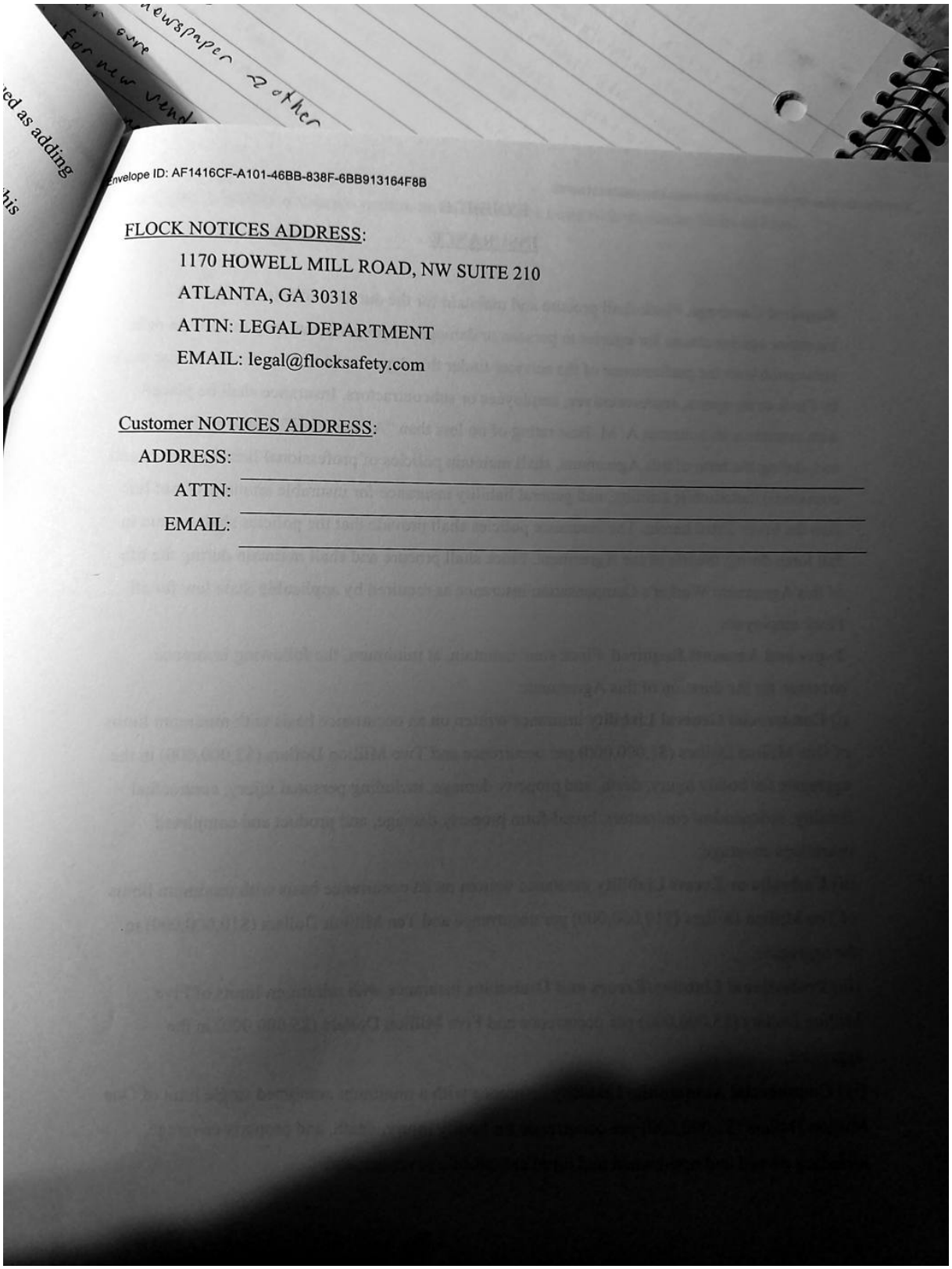
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EXHIBIT B

INSURANCE

Required Coverage. Flock shall procure and maintain for the duration of this Agreement insurance against claims for injuries to persons or damages to property that may arise from or in connection with the performance of the services under this Agreement and the results of that work by Flock or its agents, representatives, employees or subcontractors. Insurance shall be placed with insurers with a current A. M. Best rating of no less than "A" and "VII". Flock shall obtain and, during the term of this Agreement, shall maintain policies of professional liability (errors and omissions), automobile liability, and general liability insurance for insurable amounts of not less than the limits listed herein. The insurance policies shall provide that the policies shall remain in full force during the life of the Agreement. Flock shall procure and shall maintain during the life of this Agreement Worker's Compensation insurance as required by applicable State law for all Flock employees.

Types and Amounts Required. Flock shall maintain, at minimum, the following insurance coverage for the duration of this Agreement:

(i) **Commercial General Liability** insurance written on an occurrence basis with minimum limits of One Million Dollars ($1,000,000) per occurrence and Two Million Dollars ($2,000,000) in the aggregate for bodily injury, death, and property damage, including personal injury, contractual liability, independent contractors, broad-form property damage, and product and completed operations coverage;

(ii) **Umbrella or Excess Liability** insurance written on an occurrence basis with minimum limits of Ten Million Dollars ($10,000,000) per occurrence and Ten Million Dollars ($10,000,000) in the aggregate;

(iii) **Professional Liability/Errors and Omissions** insurance with minimum limits of Five Million Dollars ($5,000,000) per occurrence and Five Million Dollars ($5,000,000) in the aggregate;

(iv) **Commercial Automobile Liability** insurance with a minimum combined single limit of One Million Dollars ($1,000,000) per occurrence for bodily injury, death, and property coverage, including owned and non-owned and hired automobile coverage; and

Master Services Agreement, photographed page 19 of 20



Master Services Agreement, photographed page 20 of 20

Axon ALPR Brief

Axon ALPR program brief (vendor document, current as of September 2026).

Axon ALPR is built around agency control, system safeguards, and an audit record the agency can review and share to meet the expectations of the communities it serves.

What Sets Us Apart

- Purpose-built security: For nearly 2 decades, Axon has securely managed agencies' most sensitive data, from body camera footage to public safety records.
- Agencies own and control their data: Agencies own their data outright, including how it's accessed and exported. Data stays with each agency, with access granted only at their explicit direction.
- Built responsibly, from the start: Axon engages with stakeholders from the earliest stages of product design, including its Ethics & Equity Advisory Council, public safety professionals, academic researchers, and community voices.
- Federal access: There is no automatic, standing or built-in federal access to agency ALPR data through Axon.
- Lawful requests: If Axon receives a lawful request, it directs the request to the agency as the data owner.
- Access control: Recipient agencies' access to data they receive does not include the ability to extend that access to others. The originating agency retains full control over who can access its data.
- Data security: Axon does not access agency data, other than for support requests, which are time-boxed, logged, and revoked once resolved.
- Agency ownership: Agencies own all hardware, from poles, to permits, to cameras. Switching providers or adding other vendors' equipment to that infrastructure is entirely the agency's call.

Key Safeguards

- Plates, not people: Axon ALPR captures license plates, not identities — no facial recognition, no biometric matching, no profiles of people or owners. Each detection logs a plate image, a vehicle context image, basic attributes (color, make, type), and time/location, checked only against hotlists an agency has authorized.
- Access permissions and search controls: Separate permissions control who can search detections and hits, manage hotlists and administer the system. Every ALPR search requires a stated reason and an offense category the agency has authorized, and each agency can choose whether to require a case number.
- Agency-configured access & retention: Every data search is subject to the originating agency's authorized offense categories, and recipients see only detections matching their own hotlists. Agencies set retention independently for detections and hits, and data is automatically removed when the retention period expires.
- Audit logs and reporting: Agencies can generate and export audit reports covering ALPR activity, data use, access controlled relationships and hotlist changes.
- Public transparency: Agencies can publish aggregate ALPR information, including hit-alert counts and current data partnerships. The portal does not publish plate numbers, images, individual records or camera locations.

- CJIS compliance & data security: Axon Cloud Services meet the FBI's CJIS Security Policy across all 13 policy areas, with tamper-proof audit trails on every evidence access, and controls independently validated each year via SOC 2 Type 2 with CJIS validation.

Ongoing Enhancements

- Additional access controls: requiring a full plate or case number before a search proceeds, plus other field-level requirements agencies can define.
- Automated anomaly flagging and reporting: flags unusual search patterns, such as the same plate searched repeatedly or under different case numbers, for administrative review, and adds a recurring audit digest.
- Outcome reporting: records outcomes from ALPR searches and hotlist follow-ups into standardized audit and transparency reporting.

Axon says it is committed to continuing to invest in additional safeguards, and that its platform helps operationalize compliance with federal, state, and local policy by automating retention schedules and generating audit-ready reports.

Additional resources: ALPR Council and Community Engagement Toolkit; ALPR@axon.com; https://trust.axon.com/ ; https://www.axon.com/getstarted/alpr-council-toolkit

This roadmap represents Axon's current plans and is subject to change. © 2026 Axon Enterprise, Inc.

Public Safety Committee Agenda (October 7)

OFFICE OF THE CITY CLERK — City of Sun Prairie. 300 East Main Street, Sun Prairie, WI 53590-2227. (608) 837-2511. FAX (608) 825-6879. www.cityofsunprairie.com

Public Notice of the City of Sun Prairie, pursuant to Section 19.84, Wisconsin Statutes, is hereby given to the public and to the news media, that the following meeting will be held:

PUBLIC SAFETY COMMITTEE MEETING — Wednesday, October 07, 2026, 7:00 PM — City Hall Council Chambers / Zoom available, 300 East Main Street, Sun Prairie, WI 53590

How to participate

1. Written comments: send comments on agenda items to sschmidt@cityofsunprairie.com
2. Watch the meeting: Roku, Amazon Fire TV, Apple TV, channel 983 on Charter, or channels 983 and 1983 on TDS; stream at sunprairiemediacenter.com or the Sun Prairie Media Center app; webinar https://us02web.zoom.us/j/86846685875

Public comments: register through the electronic submission system at https://cityofsunprairie.com/Comments/publicsafetycommittee. The survey closes for public comment 30 minutes before the meeting.

Agenda

1. Call to order and roll call
2. Approval of minutes — A. Approval of minutes from the July 15, 2026 meeting
3. Citizen appearances / public comment
4. Staff updates — A. Fire/EMS Chief's update – Chris Garrison. B. Police Chief's update – Kevin Warych
5. Unfinished business

6. New business
    - A. Consideration, discussion, and possible action on Ordinance repealing and recreating Ch. 5.40 regulating massage establishments. – LT Ray Thomson
    - B. Consideration, discussion, and possible action on amending City Ordinance Chapter 10.24 – Enforcement and Penalties. – Assistant Chief Ryan Cox
    - C. Chief report on Axon Outpost as the police department's Automated License Plate Reader (ALPR) technology moving forward. – Chief of Police Kevin Warych
    - D. Consideration, discussion, and possible action on Police Department Toy Drive Fundraiser. – Detective Jeremy Rademacher
7. Referrals
8. Announcements
9. Adjournment

Posted October 2, 2026 at Sun Prairie City Hall (300 East Main Street), Sun Prairie Public Library (1350 Linnerud Drive), and www.cityofsunprairie.com.

Note: Upon reasonable notice, efforts will be made to accommodate the needs of disabled individuals through appropriate aids and services. Contact the City Clerk's Office, 300 East Main Street, Sun Prairie WI 53590, (608) 837-2511. A quorum of other governmental bodies may attend to gather information; no action will be taken by any body other than the one named in this notice.

Axon Price Estimate

Public Safety Committee mini-packets (October 7, 2026 meeting)

Mini-packet 1 — Item 4B, Police Chief's update – Kevin Warych.

Mini-packet 2 — Item 6C, Chief report on Axon Outpost as the police department's ALPR technology moving forward – Chief of Police Kevin Warych. It contains the Axon quote below plus a copy of the Axon ALPR program brief (reproduced earlier in this section).

Axon Non-Binding Budgetary Estimate — Quote Q-932192-001 (DRAFT)

Account 127301. Issued Sep 22, 2026; expires Nov 30, 2026. Payment terms N30. Delivery AUTO-GND. Currency USD.

- Ship to / Bill to: Sun Prairie Police Department – WI, 300 E Main St, Sun Prairie, WI 53590-2227
- Sales representative: Brandon Jones, brjones@axon.com
- Primary contact: Kevin Warych, (608) 825-1153, kwarych@cityofsunprairie.com

Quote summary

- Program length: 120 months (Contract start May 1, 2027 — end Apr 30, 2037)
- Net total: $235,388.97. Est. tax $0.00. Total contract value $235,388.97
- MSRP $384,137.10; total savings $148,748.13

Payment schedule

- Apr 1, 2027 — $23,538.87
- Apr 1 each year 2028 through 2036 — $23,538.90 per year
- Total — $235,388.97

Pricing

- B00076 Outpost TAP Plan — qty 3, 120 months from 5/2027 — unbundled list $355.66, list $264.97, net $217.95 — subtotal $78,462.99
- B00076 Outpost TAP Plan — qty 6, 120 months from 5/2027 — unbundled list $355.66, list $264.97, net $217.95 — subtotal $156,925.98

Delivery schedule

Estimated ship Apr 1, 2027 to 300 E Main St:

- Hardware (9 each): Outpost Battery & Charger Enclosure – Extended; Outpost Camera; Outpost Pole – Standard; Outpost Solar Panel – 100W; Outpost Standard Solar Hardware Kit; Outpost Top Mount End Cap – Standard
- Services (9 each): Outpost Standard Installation; Outpost Upgrade Installation
- Warranties (9 each): Outpost Extended Warranty – Camera; Outpost Maintenance

Estimated ship May 1, 2027: Software — Axon Vehicle Intelligence ALPR License (9) Estimated ship Apr 1, 2032: TAP Refresh One — Battery Enclosure Extended (9); Camera (9) Estimated ship Apr 1, 2037: TAP Refresh Two — Battery Enclosure Extended (9); Camera (9)

Terms & conditions

This Rough Order of Magnitude estimate is provided for budgetary and planning purposes only. It is non-binding and is not a contractable offer for sale. Tax is estimated and subject to change. Exceptions: (1) Estimated amounts under existing or terminated contracts, including transfer balances, are estimates and may be adjusted if new contracts are not executed on anticipated dates. (2) TAP refresh prior to renewal: Axon may ship refresh hardware under the existing contract while renewal agreements are in progress. (3) Shipment variance: estimated ship dates are not guarantees.

Axon Enterprise, Inc., 17800 N 85th St, Scottsdale, Arizona 85255. (800) 978-2737.

SPPD ALPR Frequently Asked Questions (October 2026)

Sent by Chief Kevin Warych in October 2026, after Zackary's Oct. 6 follow-up questions.

Automated License Plate Reader (ALPR) Technology: Frequently Asked Questions

The Sun Prairie Police Department (SNPD) is committed to using technology responsibly to enhance public safety while respecting the privacy and rights of our community members.

As the department transitions from Flock Safety to Axon automated license plate reader (ALPR) technology, we recognize that residents may have questions about how the system works, what information is collected, who can access it, and how that information is protected.

The following frequently asked questions explain the technology, its intended use, and the safeguards in place to promote transparency, accountability, and responsible data management.

Understanding the Technology

What is an Automated License Plate Reader (ALPR)?

An Automated License Plate Reader (ALPR) is a camera-based technology that captures images of vehicles and their license plates as they pass a specific location.

ALPR technology provides law enforcement with an additional investigative tool to help identify vehicles associated with criminal activity, locate missing persons, and support other legitimate public safety investigations.

The cameras capture information at a specific point in time. They do not provide continuous, real-time tracking of vehicles or individuals.

What information do ALPR cameras collect?

The Axon ALPR system captures:

- An image of the vehicle's license plate.
- A broader image of the vehicle and its surroundings.
- Basic visible vehicle characteristics, such as color, make, and vehicle type.
- The date, time, and location where the vehicle was photographed.

Because the cameras capture images of the surrounding area, photographs may incidentally include nearby people, signs, buildings, or other objects.

However, the system does not use facial recognition technology or analyze images to identify pedestrians or vehicle occupants.

Can the cameras identify drivers, passengers, or pedestrians?

No. The ALPR system is designed to identify license plates and capture basic vehicle information—not to identify individuals.

Although a person may incidentally appear in a photograph, the system does not perform facial recognition or use those images to identify drivers, passengers, or pedestrians.

The system also does not automatically retrieve registered vehicle owner information or create profiles of vehicle owners.

Can ALPR cameras be used to monitor speeding or issue traffic citations?

No. Neither the department's current Flock cameras nor the planned Axon ALPR cameras measure vehicle speed.

The Axon ALPR system does not currently have speed-detection capabilities, and there are no current or near-term plans to introduce them.

Why does the Sun Prairie Police Department use ALPR technology?

ALPR technology is one of several investigative tools used by the Sun Prairie Police Department to help protect the community.

It can assist officers with:

- Identifying vehicles associated with criminal investigations.
- Locating stolen vehicles.
- Supporting investigations involving missing or endangered persons.
- Developing investigative leads.
- Identifying vehicles connected to serious incidents.
- Helping investigators use available resources more efficiently.

ALPR technology does not replace traditional police work or independent investigative judgment. It provides additional information that may help officers investigate incidents and respond to public safety concerns.

Has ALPR technology made a difference in Sun Prairie?

The Sun Prairie Police Department has experienced meaningful investigative benefits from its use of ALPR technology.

The system has assisted officers in identifying vehicles of interest, developing investigative leads, and supporting criminal investigations.

The department has shared examples of successful ALPR-assisted investigations with the Public Safety Committee and Common Council.

While individual investigative successes do not independently establish that ALPR technology reduces overall crime rates, they demonstrate how the technology can support local law enforcement efforts.

Why is the department transitioning to Axon?

The transition to Axon provides an opportunity for the department to continue using ALPR technology while strengthening its approach to data management, information sharing, and accountability.

Key considerations include:

- Greater control over which agencies can access Sun Prairie's information.
- Formal data-sharing agreements.
- Restrictions on federal agency access.
- Detailed audit records of system activity.
- Continued City ownership of ALPR data.
- An opportunity to establish a shorter data retention period.

The department's goal is to maintain a useful investigative tool while implementing safeguards that reflect the community's expectations regarding privacy, transparency, and responsible use.

Data Ownership, Storage & Retention

Who owns the information collected by ALPR cameras?

The City of Sun Prairie owns and controls the information collected by its ALPR cameras.

This includes license plate images, vehicle photographs, associated data, and information generated through the system.

Axon does not acquire ownership rights to the City's ALPR data.

How long is ALPR information stored?

The Sun Prairie Police Department currently retains ALPR information for 30 days.

The final retention period for the Axon system has not yet been established. As part of the transition to Axon, the department is evaluating a shorter retention period that balances investigative needs with community privacy considerations.

Once the established retention period expires, the system automatically deletes the information in accordance with its retention settings.

What happens to the data if the City ends its contract with Axon?

If the City terminates its agreement with Axon, the Police Department will no longer be able to use the technology or access its data through the system.

The City retains ownership of its information and has 90 days following termination to retrieve its data. After that period, the data is deleted. The City can also export audit and activity reports for its records.

Who pays to store the information?

The City pays a fee for each ALPR camera, which includes the cost of data storage.

The system automatically deletes information after the established retention period. This prevents the indefinite accumulation of data and helps maintain predictable storage requirements.

The City's data is not sold to third parties to offset storage costs.

Can Axon sell ALPR information to insurance companies or other businesses?

No. Axon cannot sell the City's ALPR data to insurance companies, private businesses, or other third parties.

The City owns and controls the information collected by its cameras.

The information is not collected for commercial purposes and is not available for sale.

Data Access, Security & Accountability

Who can access Sun Prairie's ALPR information?

Access is restricted to authorized Sun Prairie Police Department employees, including sworn personnel and dispatchers, whose responsibilities require use of the system.

Access may also be granted to specifically approved state or local law enforcement agencies through a formal agreement with the City.

Each user receives access based on their assigned role and responsibilities.

Can Axon employees access the City's ALPR information?

Axon employees do not have unrestricted or ongoing access to the City's ALPR data.

Access may be temporarily authorized when the Police Department requests technical assistance. Any such access must be:

- Specifically approved by the department.
- Limited to the purpose of the support request.
- Restricted to the time necessary to complete that request.
- Logged and available for audit.

How is the information protected from unauthorized access?

The ALPR system incorporates multiple security safeguards, including:

- Role-Based Access: Users can access only the features and information authorized for their assigned responsibilities.
- Multi-Factor Authentication (MFA): Users must complete an additional identity verification step when accessing the system.
- CJIS Compliance: The system meets applicable Criminal Justice Information Services (CJIS) security requirements used to protect sensitive law enforcement information.
- Audit Logs: System activity is recorded so the department can review how the technology is being used.

These safeguards help protect information from unauthorized access and support accountability.

Who is authorized to search the ALPR database?

Authorized Police Department employees, including sworn officers and dispatchers, may conduct searches for legitimate law enforcement purposes.

Access to the system does not mean an employee has unlimited authority to search the database.

All searches must comply with department policies and established restrictions.

What is required to conduct an ALPR search?

Every ALPR search must be connected to an authorized law enforcement purpose.

Before conducting a search, users must enter:

1. An authorized offense category.
2. A specific reason for the search.

The department determines which offense categories are permitted.

If a user selects an offense category that has not been authorized by the department, the system will not return ALPR data.

The offense category and stated reason are recorded in the system's audit history.

Are all searches logged?

Yes. Every search is logged.

Audit records allow the department to review system activity, including who conducted a search and the reason provided. This includes searches performed by users with administrative privileges.

Can employees or administrators delete their search history?

No. Users cannot delete or modify their search history.

System administrators can review audit records but cannot alter or erase searches from the audit log.

This safeguard helps ensure accountability and supports the investigation of potential misuse.

What prevents an employee from using the system for personal reasons?

The department has established safeguards to help prevent and detect unauthorized use.

Every search requires a stated law enforcement purpose and is associated with an identifiable user.

Because searches are logged and cannot be deleted by users or administrators, the department can review activity and investigate potential misuse.

Using ALPR information for personal reasons—such as monitoring a former partner, acquaintance, or other individual without a legitimate law enforcement purpose—would be an unauthorized use of the system.

Information Sharing with Other Agencies

Does the Sun Prairie Police Department share ALPR information with other law enforcement agencies?

Yes, but sharing will be limited, controlled, and subject to formal agreements.

Under the planned Axon system, the department intends to establish a more restrictive approach to information sharing than was available through its previous Flock system.

Information will be shared only with approved state and local law enforcement agencies that have entered into a formal Memorandum of Understanding (MOU) with the City.

There will be no blanket sharing of ALPR information.

Will federal agencies have access to Sun Prairie's ALPR database?

No. The department will not share ALPR database access with federal agencies.

Axon's ALPR sharing system does not provide built-in or automatic federal agency access.

The Sun Prairie Police Department will also prohibit ALPR data-sharing agreements with agencies participating in the federal 287(g) immigration enforcement program.

This restriction is intended to ensure that access remains consistent with the City's established public safety priorities and data-sharing requirements.

Can another agency share Sun Prairie's ALPR information with additional agencies?

No. The Axon system is designed to prevent agencies from redistributing ALPR data that they do not own.

The system uses a method known as federated sharing, which allows an approved agency to access authorized information without receiving ownership of a separate copy of the database.

An agency can share only ALPR data that it owns.

Can another agency use Sun Prairie's ALPR information to investigate crimes outside Wisconsin?

Potentially, yes, provided the search meets the requirements established in the formal data-sharing agreement.

Each participating agency must agree to the authorized uses of the information.

The City will not permit its ALPR data to be used for purposes that violate the agreement or fall outside the approved law enforcement objectives.

If an agency violates the terms of its agreement, the City will discontinue sharing ALPR information with that agency.

What happens if another agency requests ALPR information for an unauthorized purpose?

The department will not authorize database access for purposes outside its approved policies and data-sharing agreements.

Formal agreements will identify the expectations and limitations governing access.

Requests made through legal processes will be reviewed by the City and its legal counsel, as appropriate.

If Axon receives a legal request for the City's data, the company directs the request to the City as the data owner and discloses information only when legally required.

Privacy & Community Concerns

Are ALPR cameras used to continuously track people?

No. ALPR cameras do not provide a continuous live feed of an individual's location or follow vehicles as they travel.

Instead, each camera captures a vehicle and license plate when the vehicle passes that specific location.

During an authorized investigation, law enforcement personnel may search previously collected records to determine when and where a particular license plate was photographed.

These searches are limited to information available within the department's established retention period.

Could ALPR cameras be used to monitor visits to medical facilities or other sensitive locations?

The department recognizes concerns about the potential misuse of ALPR technology, particularly regarding visits to medical facilities, reproductive health providers, or other sensitive locations.

The ALPR system does not identify why a person visits a particular location or monitor an individual's activities.

However, a license plate search may reveal that a vehicle was photographed at a particular location and time.

For this reason, access to ALPR information is restricted to authorized law enforcement purposes, and searches are subject to audit and oversight.

The department's data-sharing agreements will also establish restrictions intended to prevent other agencies from using Sun Prairie's information for unauthorized purposes.

What safeguards prevent ALPR information from being used for activities that are not crimes in Wisconsin?

The department will establish formal data-sharing agreements defining how its ALPR information may be used.

These agreements will identify authorized purposes and prohibit uses that fall outside those requirements.

For example, the department does not intend to permit another agency to use Sun Prairie's ALPR database to investigate conduct that is lawful in Wisconsin solely because it is prohibited in another jurisdiction.

Agencies that violate the terms of their agreements will lose access to Sun Prairie's ALPR information.

Does the system create profiles of residents or their travel habits?

The Axon ALPR system does not automatically create behavioral profiles of individuals or registered vehicle owners.

It collects individual vehicle detections at specific locations and times.

Authorized law enforcement personnel may search historical detections associated with a particular license plate for an approved investigative purpose.

Those searches are logged and subject to department oversight.

Our Commitment to the Community

The Sun Prairie Police Department recognizes that public trust is essential to effective law enforcement.

We are committed to using ALPR technology in a manner that supports public safety while protecting individual privacy and promoting accountability.

Our guiding principles are straightforward:

- **Public Safety:** Use technology to support legitimate law enforcement investigations and protect the community.
- **Privacy:** Limit the collection, retention, access, and sharing of information.
- **Accountability:** Maintain auditable records of system activity and establish clear expectations for authorized use.
- **Transparency:** Provide residents with understandable information about how the technology works and the safeguards governing its use.

We welcome community questions and remain committed to evaluating our practices as technology, legal requirements, and community expectations evolve.

— Kevin Warych, Chief of Police, Sun Prairie Police Department